



INTERNAL DISPLACEMENT

Global Overview of Trends and Developments in 2004

Global IDP
PROJECT



NORWEGIAN REFUGEE COUNCIL

INTERNAL DISPLACEMENT

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March 2005

A young women in front of a house damaged by the fighting that led to her displacement from Kindamba in the Pool region of Congo-Brazzaville. Photo: Global IDP Project/Arild Birkenes



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Cover photo:

A Palestinian boy carries his family's belongings as Israeli army bulldozers and tanks coming towards his home in the southern Gaza Strip, May 2004. Photo: Reuters/Goran Tomasevic, courtesy www.alertnet.org

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Printed by Nove Impression et Conseil, Route de Champ-Colin 2, 1260 Nyon

Published by the

Global IDP Project

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The Global IDP Project

The Global IDP Project, established by the Norwegian Refugee Council, monitors conflict-induced internal displacement worldwide at the request of the United Nations.

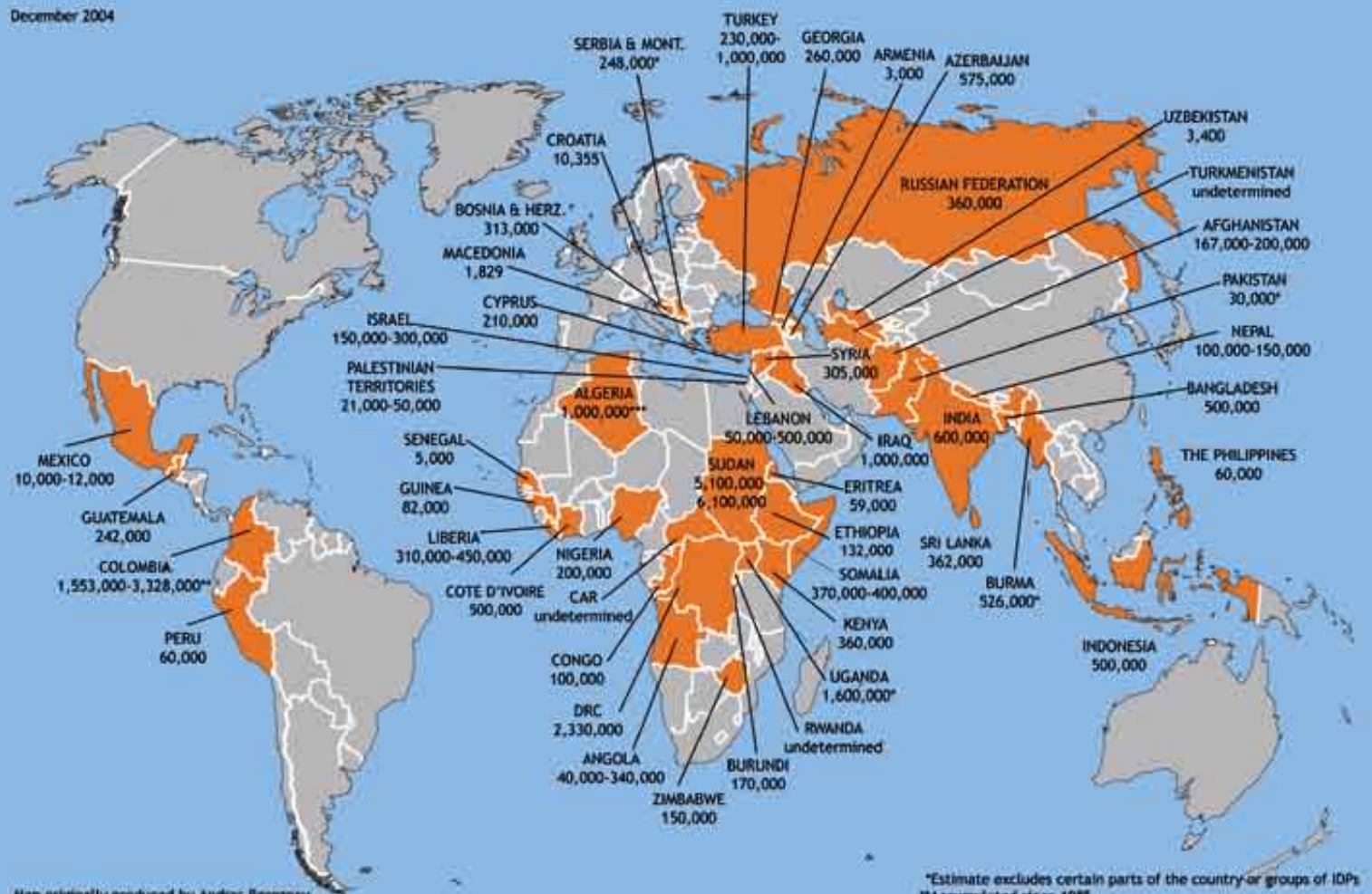
The Geneva-based Project runs an online database providing comprehensive and regularly updated information and analysis on internal displacement in some 50 countries.

This report is based on information included in the online IDP database. For more details on the displacement situations in specific countries, or references to sources used in the report, please visit the database at

www.idpproject.org

Internally Displaced People Worldwide 2004

December 2004



Map originally produced by Andras Berezney
and modified by the Global IDP Project

*Estimate excludes certain parts of the country or groups of IDPs

**Accumulated since 1985

***Accumulated since 1992

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Facts and Figures at a Glance

Total IDP population:	25 million (December 2004) in at least 49 countries
Worst affected continent:	Africa (13.2 million IDPs in 19 countries)
Largest internal displacement situations:	Sudan (up to 6 million IDPs), Colombia (up to 3.4 million), DRC (2.3 million), Uganda (up to 2 million), Iraq (over 1 million)
Major new displacement during 2004:	Sudan, Uganda, Colombia, Iraq, Somalia, Nepal
Major return movements during 2004:	DRC, Angola, southern Sudan, Liberia, Burundi, Central African Republic
Worst displacement situations:	Burma (Myanmar), Colombia, Côte d'Ivoire, DRC, Indonesia, Iraq, Nepal, Russian Federation, Somalia, Sudan, Uganda
Estimated number of IDPs at risk of death through violence:	14 million
Number of governments involved in displacing people:	at least 13
Estimated number of IDPs without adequate humanitarian assistance from their governments	18 million in 29 countries, including at least 5 million without any government assistance
Estimated number of IDPs unprotected by their governments	At least 12.5 million in 14 countries
Number of countries without UN involvement in IDP assistance	14 (nearly one third of all countries affected)
Proportion of women and children among IDPs	70-80%

2 Foreword

The Global IDP Project of the Norwegian Refugee Council is pleased to be able to present its yearly Global Overview of major trends and developments with regard to internal displacement.

This report is based on the wealth of information and analysis that is included in the online IDP database run by the Global IDP Project. Set up in 1999 at the request of the United Nations, the database covers all situations of conflict-induced displacement worldwide and provides access to more than 12,000 documents. Through the database, regularly updated country reports and its bi-weekly IDP NewsAlert, the Project has become the leading international provider of internal displacement information and analysis, and a key partner in the global advocacy for the rights of internally displaced people (IDPs).

With this Global Overview, the Global IDP Project hopes to contribute to raising awareness of the plight of one of the world's most vulnerable groups – a group which despite its enormous size and needs is still far from receiving the level of attention and assistance it deserves. Internal displacement is not a new phenomenon, but a more vigorous international response to the problem is only very slowly taking shape. During 2004, once again little tangible progress was made in effectively addressing the global internal displacement crisis, including, most importantly, its root causes.

As this report shows, the overall number of IDPs remained at a staggering 25 million, and a number of deteriorating displacement crises such as the one in Sudan's Darfur region overshadowed the improvements seen elsewhere. Perhaps equally troubling with the sheer overwhelming humanitarian and protection needs of the displaced in ongoing emergencies is the inability to find solutions for the large number of protracted displacement situations, which in some cases are now already preventing the second or third generation of IDPs from reintegrating into society.

National governments have the primary responsibility to prevent displacement, protect displaced people from violations of their human rights, provide human-

itarian assistance and facilitate return. During the past year, however, most governments again failed to live up to this responsibility in an adequate way relative to the resources at their disposal.

The availability of information on the situation of IDPs, including on their needs and intentions, is a key precondition for finding and implementing durable solutions in line with international standards as laid out in the Guiding Principles on Internal Displacement. Yet nearly all displacement situations are marked by enormous information gaps, to the extent that in many countries we do not even know with any measure of accuracy how many people are affected by internal displacement. Improving data collection in the field must clearly become a priority now.

By compiling and analysing available information on internal displacement, the Global IDP Project hopes to contribute – also through this report – to ongoing efforts to improve responses at the national and international level.

Elisabeth K. Rasmusson

NRC Resident Representative and head of the Global IDP Project

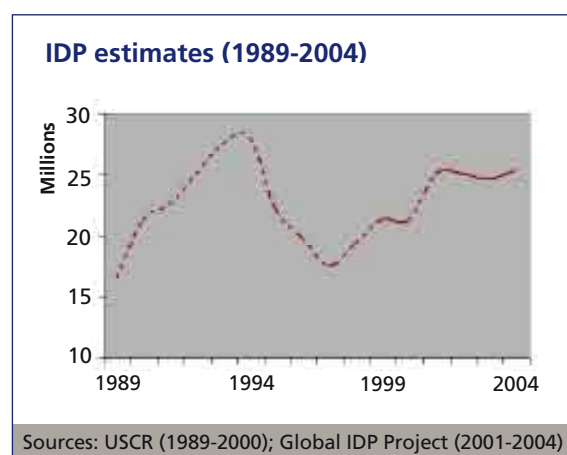


A displaced woman walks through Dirail camp which houses over ten thousand displaced Sudanese people in southern Darfur, Sudan. Photo: Reuters/Antony Njuguna, courtesy www.alertnet.org

Global Trends and Developments

At the end of 2004, the total number of people displaced within their own countries by conflict or human rights violations again amounted to roughly 25 million¹. For four years now this figure has remained almost unchanged. This means that for every displaced person having been able to return over the past few years, there was another person who was forced out of his or her home. In 2004, as in the year before, nearly three million were newly displaced, while almost as many were able to go back to their homes. The overwhelming majority, some 22 million people, have been displaced for more than a year; many of them for a decade or even longer. The average length of the conflicts that caused displacement and prevented return was 14 years. For most of these long-term IDPs, 2004 was just another year without tangible improvements with regard to their ability to exercise their right of return and other fundamental rights and freedoms.

The year 2004 was overshadowed by the dramatic escalation of the conflict in Sudan's Darfur region, which caused the death of as many as 300,000 people and uprooted close to two million, among them some 1.7 million IDPs, since the beginning of the conflict. Although the crisis received significant international



attention since spring 2004, about one year after fighting had erupted, the violence continued unabated and the international community largely failed to get a sufficient amount of experienced staff on the ground in a timely manner to address what the UN called the world's worst humanitarian crisis.

Internal displacement: a neglected human tragedy

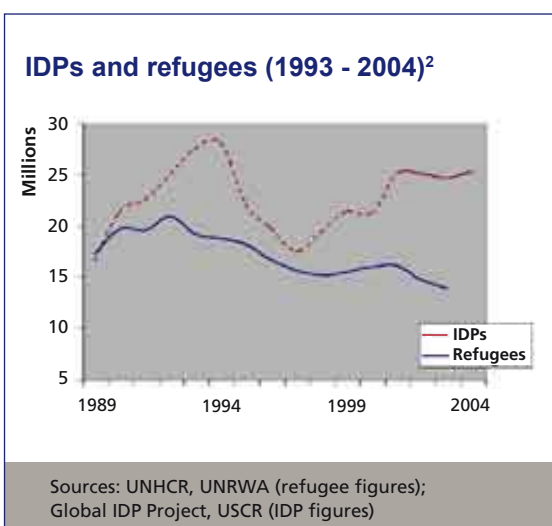
Internally displaced people are among the most vulnerable victims of conflict, and constitute arguably the largest at-risk population in the world. The abstract term "internal displacement", created to distinguish IDPs from refugees, fails to convey the immense human suffering most internally displaced people are forced to undergo. The act of displacement itself often is accompanied by violence and the most serious human rights violations such as arbitrary killings, torture, kidnappings and rape.

Traumatized and fearing for their lives, every year millions of people, most of them women and children, are forced to leave behind their homes, land and other belongings to seek refuge in more secure areas.

While those who manage to flee across an internationally recognised border can claim protection and assistance under the 1951 refugee convention and can turn to the UN refugee agency UNHCR for help, no such system exists for internally displaced people. IDPs remain largely dependent on their governments who have the primary responsibility to protect and assist them, but often lack the interest or means to do so. Consequently, large numbers of IDPs remain at high risk of further violence, malnutrition and diseases, and many are forced to flee several times.

Without access to employment, farmable land, social services or even informal support networks, many IDPs, in particular those living in camps, have to rely on humanitarian aid to survive. But large numbers of IDPs receive too little or no assistance at all. The reasons are manifold: insecurity, natural barriers, lack of donor funds, coordination problems among aid agencies, corrupted or hostile authorities complicating access, or lack of information on the whereabouts and living conditions of IDPs living with host communities rather than in designated sites.

Millions of IDPs remain displaced even though the violence that caused their displacement has long ended. This is often due to deadlocks in peace talks or



the lack of opportunities for reintegration in war-ravaged return areas, including difficulties in repossessing properties. While remaining in situations of protracted displacement, many IDPs are forced to live as second-class citizens, facing discrimination, restrictions of their freedom of movement and their political rights, as well as difficulties in accessing personal documents and social services and benefits. Unresolved displacement crises remain festering sources of instability within the countries affected, and have the potential to spill over borders to threaten regional security.

Despite the scale of the worldwide displacement crisis, its destabilising effects on regional security, and the particular vulnerabilities of many internally displaced populations, the international community has been slow in addressing the issue. Refugees, usually far more visible, continue to receive a lot more international attention, although their number is only about half that of IDPs (see *chart*). Yet while the need to improve assistance and protection provided to IDPs now appears to be generally acknowledged, the massive displacement crisis in Darfur (Sudan) showed once again that the international community is far from being capable of effectively responding to, let alone preventing, such emergencies.

IDP estimates by region (2004)		
Region	Countries	IDPs (mln.)
Africa	19	13.2
Americas	4	3.7
Asia-Pacific	11	3.3
Europe	10	3.0
Middle East	5	2.1
Total	49	25.3

The international normative and institutional framework for responses to internal displacement crises remains weak, mainly because states have been reluctant to allow a more systematic international involvement in an issue they consider an internal affair protected from foreign interference by the principle of sovereignty. The “Collaborative Response”, developed by the UN in the absence of a single organisation mandated to protect and assist IDPs, requires all agencies to work together to ensure that the needs of IDPs are addressed in a comprehensive, systematic and predictable manner. But this approach has been crippled by a number of problems, including a lack of commitment to coordination by agencies, and so far has not led to the expected results in many countries.

For more details on main thematic issues related to internal displacement, see thematic overview section on pages 18 to 37.

Major regional developments

Africa: the worst affected continent

With over 13 million IDPs in 19 countries, Africa remained the continent by far most affected by internal displacement in 2004. More than half of the world’s internally displaced people lived in Africa. In Sudan alone, up to 6 million people were internally displaced, more than in any other country in the world. Sudan also is the country with the largest amount of people newly displaced in 2004 (about one million, mostly in Darfur). Other large-scale displacement crises in Africa included the Democratic Republic of Congo (DRC) with 2.3 million IDPs and Uganda with up to 2 million IDPs. On the other hand, Africa also accounted for the world’s highest return movements in 2004. In the DRC, more than one million IDPs were able to return home after a power-sharing agreement signed in 2003 significantly reduced the level of violence in the country. In Angola, the return process triggered by the end of the civil war in 2002 continued unabated with another 900,000 people being able to go back to their homes during 2004. Large-scale return movements also began or continued in other African countries where peace processes ended civil wars, including Sudan (mainly to the south) and in Liberia.

Americas: Colombia among the world’s worst IDP crises

Colombia, the country with the world’s second largest IDP population, accounts for most of Latin America’s 3.7 million internally displaced people and nearly all new displacements recorded in the region during 2004. While most armed conflicts have ended in the

International response taking shape

late 1980s	Internal displacement emerges as an issue on the international agenda
1992	UN Secretary-General appoints Francis Deng as his Representative on Internally Displaced Persons
1997	UN Secretary-General appoints Emergency Relief Coordinator as focal point for IDPs in the UN system
1998	Publication of the Guiding Principles on Internal Displacement
1999	Global IDP Project launches IDP database at the request of the UN
2000	- Inter-Agency Standing Committee adopts IDP policy - Emergency Relief Coordinator establishes Senior Inter-Agency Network on Internal Displacement
2001	Global number of IDPs reaches 25 million and remains largely unchanged for the following years
2002	Internal Displacement Unit (since 2004: Division) established within UN Office for the Coordination of Humanitarian Affairs (OCHA)
2004	- UN Secretary-General appoints Walter Kälin as Representative on the Human Rights of Internally Displaced Persons - Inter-Agency Standing Committee adopts revised IDP Policy Package to strengthen the "Collaborative Response"

region and IDPs have generally been able to return or resettle, the displaced in Mexico, Guatemala and Peru were still waiting for durable solutions, mainly with regard to property issues and indigenous rights. Colombia remained one of the world's worst internal displacement situations, where large numbers of people, particularly members of the indigenous and Afro-Colombian communities, continued to be at high risk of being targeted by the warring parties.

Asia-Pacific: IDP return continues at slower pace

The number of IDPs continued to decrease in the Asia-Pacific region and reached 3.3 million by the end of 2004. However, the high return rates recorded in 2002

and 2003 in the three countries most affected by internal displacement – Afghanistan, Indonesia and Sri Lanka – levelled off significantly in 2004. Also, parallel to these return movements, the outbreak or intensification of conflicts led to new displacements, in particular in Nepal, Indonesia (Aceh, Maluku), Pakistan, Burma (Myanmar) and to a lesser extent in Afghanistan and the Philippines.

Europe: no breakthrough in resolving frozen conflicts

No major breakthrough was made during 2004 in any of the "frozen" conflicts that had caused the displacement of a large part of Europe's three million IDPs. Significant return movements were only recorded in Bosnia and Herzegovina. In Turkey, which is believed to host Europe's largest IDP population, new government initiatives to address the issue had not yet led to any meaningful increase in return figures. In Cyprus, hopes for the return of IDPs were dashed by the rejection of the UN plan to settle the conflict in a referendum in April 2004. Another major setback was the outbreak of inter-communal violence in Kosovo (Serbia and Montenegro) in March 2004, which derailed the fragile return process in the province.

IDPs and refugees by region

Region	IDPs	Refugees (2003) ³
Africa	13.2	3.5
Americas	3.7	0.1
Asia-Pacific	3.3	3.2
Europe	3.0	1.6
Middle East	2.1	5.2

A Rwandan soldier from the African Union force deployed in Darfur looks at the remains of the burnt-out village of Saher in Darfur, Sudan. Photo: Reuters/Antony Njuguna, courtesy www.alertnet.org



Middle East: new large-scale displacements in Iraq

In the Middle East, Iraq still accounted for about half of the region's 2.1 million IDPs. In 2004, hundreds of thousands of people were newly displaced in Iraq by military operations against suspected militants in Fallujah and other cities. Kurdish IDPs displaced by the previous regime continued to return to their home areas in northern Iraq, albeit in lower numbers than in 2003. In the Palestinian Territories, thousands of people were forcibly displaced in 2004, mainly by house demolitions carried out by the Israeli military.

For more details on regional trends and developments, see regional overview section on pages 38 to 63.

Internal conflict: main cause of displacement

Most IDPs uprooted by civil wars

Internal strife remained by far the most significant cause of conflict-induced displacement and obstacle to return. Of the conflicts that led to the displacement of

the 25 million IDPs counted in 2004, only very few are "classic" inter-state conflicts (Ethiopia-Eritrea, India-Pakistan, Israel-Syria). A number of other conflicts causing displacement have been marked by a combination of internal fighting and direct foreign military interventions, such as the conflicts in Afghanistan, Cyprus and DRC. Most often, however, displacement situations are linked to civil wars typically pitching one or more rebel groups, often with secessionist or revolutionary agendas, against the central government or militias backed by the authorities. This scenario characterises some of the worst displacement situations, including Sudan, Colombia, Uganda, Nepal and Burma (Myanmar). In other countries, including Serbia and Montenegro (Kosovo) and Nigeria, outbreaks of inter-communal violence were a major cause of new displacement in 2004. In a few countries, including Turkmenistan, Uzbekistan, Burma (Myanmar) and Rwanda, the government has forcibly displaced and resettled individuals or groups of people in attempts to increase control over them or punish dissent.

Deliberate attacks on IDPs

No major new conflict leading to internal displacement erupted in 2004, but a number of ongoing civil

wars continued or intensified during the course of the year. Sudan (Darfur and Upper Nile), Uganda, Iraq and Nepal are among the countries where the security situation deteriorated significantly and hundreds of thousands of people were newly displaced in 2004.

While the total number of intra-state conflicts has gone down over the past years, the number of IDPs has remained largely stable (see *chart on page 14*). One of the possible explanations for this trend could be that the intensity of conflicts is increasing. Indeed, in many countries civilians, including IDPs, did not only suffer from the indirect effects of war, such as increased insecurity and destruction of infrastructures, but were also directly and deliberately targeted as part of the warring parties' war strategies. In some cases, including in Darfur, people were attacked with the aim of displacing them from their land and villages. In other cases, attacks on IDPs and other civilians were motivated by attempts to strip adversaries of their support bases.

In 2004, IDPs and other civilians were the targets of deliberate aggression by armed forces in nearly half of the countries affected by internal displacement. In at least 13 countries, the very governments responsible for the protection of the population on their territories were involved in such attacks, either through regular forces or government-backed militia. Rebel movements, too, were among the perpetrators in a number of countries. Nearly 14 million IDPs in some 20 countries, three million more than in 2003, were at constant risk of losing their lives because they were caught in the proximity of fighting or in areas where the state's protection structures had collapsed. In eight countries – Central African Republic, Colombia, DRC, Indonesia, Iraq, Nepal, Somalia and Sudan – the security situation was so bad that IDPs were not able to find safe shelter and large numbers were forced to flee repeatedly.

Peace processes raise hopes for return

On the positive side, a number of ongoing peace processes raised hopes for the return of IDPs in several countries. The power-sharing agreement concluded in 2003 in the DRC created conditions that encouraged about one million people to go back to their homes. After the end of the Liberian civil war in 2003, the international community started to facilitate the return of IDPs in November 2004, and thousands of displaced had already gone back to their places of origin by the end of the year. In Sudan, progress in the talks between the government and the SPLM controlling the south of the country triggered the spontane-

The world's worst displacement situations

Burma (Myanmar)
Colombia
Cote d'Ivoire
DRC
Indonesia
Iraq
Nepal
Russian Federation (Chechnya)
Somalia
Sudan
Uganda

Based on a combination of indicators including type of displacement, number of IDPs, access to protection and assistance, security situation, and government response

ous return of over 400,000 people. In what could be a step towards re-establishing government authority in war-torn Somalia, the country's main clans agreed on a formula for the composition of an interim parliament after years of negotiations and elected the heads of a provisional government in late 2004. In December 2004, a peace deal was signed between the Senegalese government and a separatist rebel group operating in the southern Casamance region, possibly opening the door for the return of several tens of thousands of people still displaced in the country. At year's end, there were also reports about peace talks between the Ugandan government and the rebel Lord's Resistance Army.

New displacement

Countries worst affected by new displacement (2004)

Sudan
Uganda
Colombia
Iraq
Somalia
Nepal

Return and reintegration

An estimated 3 million IDPs were able to return to their homes in 2004. Most of the returns took place in Africa, with the DRC and Angola alone accounting for nearly two thirds of all return movements. It was unclear, however, to what extent these returns would be sustainable, as conditions in areas of origin generally were not conducive to a lasting reintegration of returnees.

Among the most common problems faced by IDPs upon return were destruction of infrastructures, including health and education facilities, lack of employment opportunities, landmines, difficulties to repossess properties, and discrimination. In some cases, as for example in Liberia, lack of security also still posed a risk to returnees and made IDPs go back to camps rather than stay in places of origin. Local authorities were often unprepared to cope with the influx of returning IDPs, such as in southern Sudan. In addition, international attention and support typically decreases rapidly after the immediate emergency situation is over, leaving only limited funding to support return and reintegration. In Bosnia and Herzegovina, for example, international funding dried up at about the same time as IDPs were finally confident enough to return to places where the worst atrocities had happened during the war. The lack of adequate return conditions made many IDPs move to urban centres, where they put additional strain on overburdened infrastructures, and increased the risk of tensions or open conflict in return areas.

IDP return

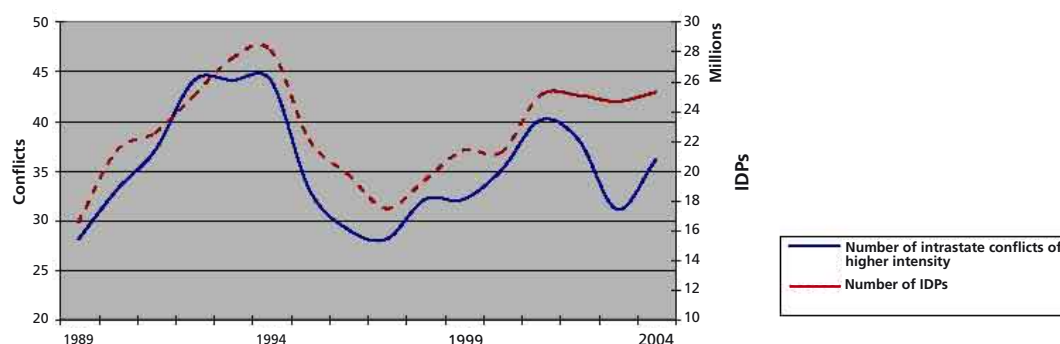
Countries with the highest numbers of returning IDPs (2004)

DRC
Angola
Liberia
Burundi
Central African Republic

In a few countries, including Colombia, the Russian Federation and Sudan (Darfur), national authorities actively pushed IDPs to return, often against the will of the displaced, although conditions in the places of origin, including the security situation, were not suitable for sustainable return.

In several countries, there was still no prospect of IDPs being able to go back to their homes after many years, or even decades of displacement, because the conflicts that forced them to flee in the first place remained unresolved, for example in the Caucasus, south-eastern Europe and the Middle East. Little progress was made in these countries in normalising the status of IDPs and providing them with better opportunities to integrate in their temporary places of residence without discrimination until return becomes an option.

IDPs and intrastate conflicts



Sources: Global IDP Project; Heidelberg Institute on International Conflict Research, Conflict Barometer 2004

Impact of the “war on terror”

The global “war on terror” continued to have an impact on internal displacement situations around the world. Several governments continued or intensified anti-rebel military campaigns labelled “counter-terrorist” operations, which led to new displacements and prevented return, including in Chechnya (Russian Federation), Aceh (Indonesia), Colombia, northern Uganda and Nepal. Although these conflicts generally began well before the terrorist attacks of 11 September 2001, the “war on terror” provided an opportunity for governments to justify the continuation of war, garner military aid and avoid international criticism of human rights violations. In some cases this has undermined opportunities for peaceful settlements of conflicts, for example in Indonesia and Nepal. In the Palestinian Territories, the Israeli army displaced thousands of Palestinians in attempts to better protect Israel from terrorist attacks through the destruction of houses along the border with Egypt.

In Iraq, over 200,000 people were displaced in late 2004 in the course of attacks by US-led coalition forces on strongholds of Iraqi insurgents, including virtually the whole population of the city of Fallujah. Similarly, a military offensive by the Pakistani army in the tribal areas of South Waziristan, aimed at capturing fugitive Taliban fighters, led to the temporary displacement of tens of thousands of people and the destruction of many houses in autumn 2004. Fear of terrorist attacks also led to the closing of borders to refugees and the tightening of asylum regulations in many states. This meant that people fleeing conflict were often left with no other option than to remain within the borders of their home countries, even though their lives were in acute danger.

Inadequate government responses

Lacking humanitarian assistance

With some exceptions, IDPs did not receive sufficient humanitarian assistance from their governments. In fact, three in four IDPs, more than 18 million people, could not count on their national authorities for the provision of adequate assistance in 2004. They got government aid only occasionally, or not at all: in at least nine countries, hosting some five million IDPs, the displaced were faced with hostile or indifferent governments not willing to assume their humanitarian responsibilities vis-à-vis the displaced populations on

No government assistance

Countries where IDPs did not receive assistance from national authorities

Burma (Myanmar)
Central African Republic
Congo-Brazzaville
Guinea
Nepal
Rwanda
Somalia
Turkmenistan
Uzbekistan

their territories. In at least 14 countries, governments deliberately tried to prevent international organisations from accessing IDP populations in need.

On the other hand, in about half of the countries affected by internal displacement the governments did make a genuine effort to address the humanitarian needs of IDPs at a level adequate to the resources at their disposal. But since most of these countries had relatively small displaced populations, only about a quarter of the world’s IDPs benefited from such efforts.

No government protection

Countries where authorities reacted with hostility or indifference to IDP protection needs

Bangladesh
Burma (Myanmar)
Congo-Brazzaville
Côte d’Ivoire
Kenya
Liberia
Mexico
Nepal
Russian Federation
Somalia
Turkmenistan
Uzbekistan
Zimbabwe

Ignored protection responsibility

Many governments also ignored their responsibility to protect the IDPs under their authority from violence and human rights abuses. In 14 countries, with a total of over 12 million IDPs, the displaced were faced with authorities that reacted with hostility or, at best, indifference to their protection needs. Clearly, the protection situation was worst in those countries where the government itself was a main agent of displacement, as was the case for example in Sudan, Burma and Nepal. Fifteen governments at least provided protection occasionally or in parts of the country. In the remaining 20 countries, most of them in Europe and the Middle East, IDPs were not in danger or governments tried to effectively ensure the safety of the displaced population.

International response

A plethora of UN agencies, other inter-governmental organisations and NGOs carry out programmes targeting IDPs in a multitude of countries. The UN's refugee agency UNHCR, for example, assisted 4.6 million IDPs in 2003⁴, and the World Food Programme (WFP) feeds millions of displaced people. But despite these and many other activities by individual organisations, the overall international response in many countries remained patchy, slow and unpredictable during 2004.

Increased efforts to improve international response

The Emergency Relief Coordinator – the principal focal point for the coordination of international assistance and protection provided to IDPs in the UN system – stepped up efforts in 2004 to ensure a more timely and systematic response. He strengthened the Inter-Agency Internal Displacement Division (previously: Unit) within the Office for the Coordination of Humanitarian Affairs (OCHA) and focused its work on a number of priority countries. The Division, set up to assist UN field operations in developing a more systematic response to internal displacement crises, undertook a number of country missions and made recommendations for improvements, but it was too early at year's end to assess their impact. Another instrument designed to improve the collaborative response of international agencies on the ground, the UN's revised IDP Policy Package, was adopted in September 2004⁵. The Package, which among other tools includes a detailed road map for the development of IDP strategies, was disseminated

for implementation to all Resident/Humanitarian Coordinators, the UN officials responsible for ensuring that the needs of IDPs are addressed in a coordinated and comprehensive way at the country level.

UN involvement

The level of involvement of the UN in addressing internal displacement situations varied greatly. In less than half of the situations, the UN was trying to provide a comprehensive multisectoral response, at least on paper. In 12 countries, the UN was involved in assisting IDPs, but the displaced were not specifically targeted or their needs were addressed only partially. In 14 countries, nearly one third of the world's displacement situations, the UN was not involved in assisting IDPs as a specific target group. This meant that over six million people, more than a quarter of the world's IDP population, were effectively excluded from the assistance and monitoring provided by the UN system (although some of them may have benefited from UN programmes targeting other vulnerable groups or vulnerable populations at large).

Similarly, the level of compliance by UN Country Teams, the ensemble of UN agencies represented in a country, with existing IDP policies also showed great differences. A number of Country Teams had developed IDP strategies and set up structures to ensure a coordinated approach, for example in Afghanistan, Colombia, Iraq, Liberia, Sudan and Uganda, although this did not

No UN involvement

Countries where the UN was not involved in IDP assistance (2004)

Algeria
Burma (Myanmar)
Congo-Brazzaville
Guatemala
India
Kenya
Mexico
Nepal
Pakistan
Peru
Rwanda
Turkmenistan
Uzbekistan
Zimbabwe

necessarily always result in an effective and systematic response. In more than half of the countries affected by internal displacement, no IDP strategy existed as of late 2004. This included large displacement situations such as Burundi, DRC, Turkey and Algeria. Consolidated Appeals (CAPs) were prepared for 17 countries affected by internal displacement, but only five of them identify IDPs as a specific target group (including a regional CAP for West Africa).

In April 2004 the UN Human Rights Commission adopted a new mandate for the UN Secretary-General's Representative on IDPs, putting more stress on the human rights aspects of his work. Following this decision, the UN Secretary-General appointed Walter Kälin as his Representative in September 2004. Kälin, who played a key role in the development of the Guiding Principles on Internal Displacement, made clear that he will continue and build on the successful work of his predecessor, Francis Deng.

Donor response

Many donor governments have committed themselves to improving the international response to internal displacement, and several of them provide funding for programmes that benefit IDPs. In a promising development, the United States' governmental aid agency USAID in 2004 became the first donor organisation to issue a policy statement with regard to IDPs⁶.

Yet the overall donor response to the problem remained minimal given the needs on the ground. Among the worst hit by underfunding were the many underreported and neglected humanitarian crises far off the top of the international news agenda, particularly those in Africa. This contrasted strongly with the generous donor response to the 26 December tsunami disaster, which highlighted the striking discrepancies in the allotment of aid money.

Moreover, donor governments again appeared to do very little to use their political influence to advocate for respect of the rights of IDPs with governments failing to respond adequately to internal displacement crises in their countries. In the case of Uganda, for example, which receives almost half of its total annual budget from Western donors, the donor community remained largely silent on the persistent failure of the government to protect IDP camps in the north of the country from attacks by the rebel LRA.

Forgotten situations

While the vast majority of IDP crises were underreported and – to varying degrees – neglected by national governments and the international community, in a number of countries internal displacement was almost completely absent from the agenda. Often, international attention to IDPs drops significantly towards the end of the emergency phase, even though the displaced continue to face specific difficulties, for example during the return process, which warrant a special focus – not to give them preferential treatment compared to others in need, but to ensure that their needs are not neglected. Although millions of IDPs are faced with protracted displacement situations lasting years if not decades, there has been very little discussion on how to improve the international response to situations out of the emergency spotlight.

In Guinea, for example, the international community focused on assistance to refugees from neighbouring countries, but hardly any programme targeted IDPs and the overburdened host communities they live in. In other countries, the international community simply decided that internal displacement had ended, such as in the cases of Rwanda and Guatemala, although there remained serious doubts as to whether the return or resettlement processes had really been completed reflecting international standards. In a number of cases, for example in India and Algeria, governments succeeded in keeping international attention and assistance away from displacement situations on their territories, mainly by asserting their national sovereignty and restricting access to affected areas.

Whatever the reason for neglect, most of these situations are marked by a near-complete lack of information on the numbers and needs of IDPs. For 19 of the 49 situations of internal displacement, there is hardly any recent information available, and in another 17 countries information flows are sporadic and fragmentary. This means that there are considerable information gaps on three in four displacement situations. Lack of proper monitoring of internal displacement was particularly evident in countries where the emergency phase was over, during the return process and in protracted situations.

Thematic Overviews 4



A young woman sells food in an IDP settlement in Bosaso, Puntland, Somalia. Photo: Global IDP Project/ Jens-Hagen Eschenbacher

Women and Children

It is estimated that women and children comprise between 70 and 80 per cent of internally displaced populations forced to leave their homes owing to armed conflict or human rights violations. Yet national and international IDP policies and strategies still do not reflect this reality. A critical gap in the international response remains the failure to collect disaggregated data, including registration, statistics and needs assessments, that reflect age and gender among IDP populations. This data is vital to ensure that the needs of women and children are appropriately addressed from the first stages of displacement to the identification of durable solutions for return and reintegration or local integration.

Internally Displaced Women

Of the millions of civilians who left their homes in search of safety, many were separated from their close families during the journey. Countless displaced women became de facto heads of their households, when their husbands fled to another area, were pressed into regular or rebel armed forces, arrested or killed. In their husbands' absence, many displaced women are caring for children and older parents alone in an unfamiliar environment.

Female-headed IDP households

Countries with a high proportion of households headed by women

Angola · Azerbaijan · Bosnia and Herzegovina (especially Srebrenica)
Burundi Colombia · DRC · Ethiopia
Georgia · Guinea · Kenya · Indonesia (Aceh)
Liberia · Russian Federation Rwanda
Somalia · Sudan · Uganda

The Guiding Principles on Internal Displacement underline the need not to discriminate on the basis of sex. They also provide for explicit protection for women. Provisions in favour of displaced women are guided by two core issues: first, to safeguard them from

Sexual violence

Countries with widespread sexual violence against displaced and other women (2004)

Bangladesh
Burma (Myanmar)
Burundi
Colombia
DRC
Liberia
Nigeria
Russian Federation
Somalia
Sudan
Uganda
Zimbabwe

gender-specific violence, and second, to uphold their rights to equal access and full participation in assistance programmes⁷.

In a climate of war, sexual violence against displaced women has been perpetrated with total impunity by both regular armed forces and armed non-state actors⁸. In 2004, widespread sexual violence against displaced and other women was reported in 12 countries. In Burundi, DRC and Liberia, there were reports of sexual abuse committed against displaced women by international peacekeepers as well. While some women have voluntarily joined armed forces, many others have been forced to do so, like the hundreds of women who were abducted by a militia in Nigeria in May 2004. Sexual abuse has also been a cause of displacement in 2004, for example reports of sexual abuse of women belonging to minority groups in Bangladesh.

The vast majority of internally displaced women lack the means to get appropriate health and psychological care, and victims of sexual violence are generally too afraid to report abuses. Campaigns against gender-



A returnee from the Hausa ethnic group attends a health clinic in Yelwa, Nigeria. Photo: Global IDP Project/Claudia McGoldrick

based violence, supported by local and international actors, have helped raising this difficult issue in several countries undergoing internal displacement, such as DRC and Burundi. It is difficult to say whether sexual violence has decreased as a result.

In 2004, hundreds of thousands of internally displaced people returned home in Afghanistan, Burundi, DRC, Angola and Sri Lanka. But in these countries, durable solutions for many displaced women have remained elusive, particularly due to the lack of recognition of their right to inherit land and the presence of landmines in areas of return. In Burundi, a bill allowing women to inherit land has been sitting in parliament for years, and many displaced women had no choice but to remain in IDP camps. They depend largely on the goodwill of others living in the camp or charity groups. In DRC and in Liberia, customary law has prevented

women from inheriting land. In Afghanistan, women heads of households have had limited access to the customary mechanisms (*jirgas* and *shuras*) used to settle property and land issues, and as a result had difficulty claiming their land upon return. In Angola and Sri Lanka, landmines have prevented the return of both men and women. This has particularly affected Angolan women as they constitute the majority of farmers. Their search for landmine-free land often causes conflict over access to traditionally communal lands.

Despite the great negative impact of conflict on women, they have shown remarkable resilience in many countries undergoing internal displacement. In an effort to survive and provide for their family, displaced and other women have engaged in trade and other economic activities to support their families. Women's organisations from every continent also contributed to the protection of IDPs. In Afghanistan, women's organisations have successfully implemented programmes for displaced persons. In Colombia, women's groups provide health and social services to victims of violence, including IDPs, and are outspoken on peace and security issues. The Georgian NGO Assist Yourself publishes a newspaper for displaced women from Abkhazia and circulates information as a way of bridging the gap between them and local women. In Uganda, a displaced women's group performs plays and dances about their life in "protected villages"⁹.

Over the past few years, humanitarian actors, such as UN organisations, NGOs and donors, have identified the need to take into account the specific needs of displaced men and women when providing protection and assistance. As a result, they have developed a series of guidelines and checklists to help humanitarian actors to address gender issues in armed conflict¹⁰. Translating these guidelines into practice has been another challenge altogether. In February 2004, a major inter-agency and donor meeting looking at the future international response to internal displacement deplored the lack of attention paid to gender issues in programmes benefiting IDPs¹¹.

Internally Displaced Children

The Guiding Principles on Internal Displacement specifically recognise that "children and unaccompanied minors...shall be entitled to protection and assistance required by their condition and to treatment which takes into account their special needs"¹². Internally displaced children are among the most at risk of war-affected children. The process of displacement in itself

Two displaced boys play tabletop football in an education centre for IDPs and local children in Bosaso, Puntland, Somalia.

Photo: Global IDP Project/
Jens-Hagen Eschenbächer



puts in danger many of the human rights guaranteed to the child in international law¹³. Displacement frequently results in the breakdown of family and community structures, the disintegration of traditional and social norms, and an increase in female-headed households which places displaced children at greater risk of infringements of their physical integrity and psychosocial well-being, including death, abuse, malnutrition, poverty, discrimination and other human rights violations. In protracted situations of displacement, internally displaced children may spend their entire childhood in camps or temporary shelters¹⁴. Although they may survive the stage of displacement, internally displaced children encounter other threats to their well-being during the process of return and reintegration. For example, displaced children returning home after conflict are regular victims of landmines¹⁵.

Conflict-induced displacement often produces more vulnerable groups of children, such as unaccompanied children, children in detention, street children and child soldiers. For example, displaced boys and girls, particularly those who have been separated from parents and family, are more often targets of abduction and forcible recruitment by rebel groups and paramilitary or government forces¹⁶. Many former child soldiers also become displaced, due the potential dangers they may face upon return such as re-recruitment and pun-

ishment by family or opposing groups. In addition to military duties, both displaced boys and girls are vulnerable to rape, sexual exploitation and enslavement, but girls are principal targets (see above).

Though international law prohibits the recruitment and participation of children in armed conflict, these practices continued in numerous countries. In 2004, countries where displaced children continued to be drawn into armed conflict by military groups included Burundi, Colombia, Côte d'Ivoire, DRC, Indonesia, Liberia, Nepal, the Philippines, Sudan and Uganda¹⁷. Forced recruitment continued also to be a significant cause of displacement among children, including in Uganda, Burma (Myanmar), Nepal and Sri Lanka. In Uganda for instance, thousands of children known as "night commuters" were driven on a nightly basis

Forced recruitment

Countries where displaced children were forcibly recruited by armed groups

Burundi · Colombia · Côte d'Ivoire,
DRC · Indonesia · Liberia · Nepal
Philippines · Sudan · Uganda



from their homes and communities to find shelter in towns and IDP camps to avoid attacks or abduction by rebels in 2004¹⁸.

The ways in which education can enhance the protection of forcibly displaced children have been increasingly recognised within the international humanitarian community. For example, education can offer a displaced child an alternative to military recruitment. Yet, many internally displaced children were unable to attend school or faced greater difficulties in doing so than other children. Often it is the cost of education that keeps displaced children out of school. In 2004, some governments, including Uganda's, made primary education free of charge to facilitate displaced children's access to primary education. However, even

with no fees, other factors such as poor security conditions, lack of infrastructure and services, lack of teaching materials, a shortage of teachers, discrimination and language barriers keep displaced children from schools.

During 2004, insecurity was among the primary reasons for displaced children being unable to access education, including in the DRC, Liberia and Sudan. In Sudan, insecurity, along with lack of transportation and obstruction by authorities, continued to keep many internally displaced children from school. Displaced children also faced difficulty accessing education due to language barriers and acute shortages in teachers in some countries, including Iraq, Nepal and Uganda. In numerous situations of internal displace-

No access to education

Countries where displaced children were unable to access education due to conflict or faced greater difficulties in accessing education than other children due to factors including security, lacking infrastructure, fees, discrimination, and language barriers

Colombia	Sudan
Guatemala	Mexico
Peru	Somalia
Burundi	DRC
Liberia	Nigeria
Bangladesh	Sri Lanka
Nepal	Philippines
Occupied Palestinian Territories	Burma (Myanmar)
Central Java, Indonesia	Iraq
Russian Federation (Chechnya)	Uganda
Congo-Brazzaville	

Children attending a primary school in the permanent relocation village of Tharanikulum, Sri Lanka.
Photo: UNHCR/R.Chalasani

ment, including Georgia, Liberia, the Russian Federation, Somalia, Sudan and Uganda, local schools did not have the capacity to integrate influxes of displaced or returnee children. In Georgia and Azerbaijan, displaced families were sheltered in school properties, thus not only disrupting access to education for their own children, but also for others from surrounding areas. In protracted situations of displacement, discrimination against displaced children from different ethnic or linguistic backgrounds often results in low attendance, as in Guatemala, Mexico or Peru.

At the international level, in April 2004, the UN Security Council requested the Secretary-General to devise an action plan to develop a systematic and comprehensive monitoring and reporting mechanism on the use of child soldiers and on other violations and abuses

committed against children affected by armed conflict. Positive developments in 2004 at the international level to address the issue of education for all children affected by armed conflict include the adoption of minimum standards for the provision of education in emergencies. At the regional level, the Council of Europe made a number of recommendations, underlining the importance of education for IDPs, particularly displaced populations in the Southern Caucasus in its Recommendation 1652 (2004). However, education for displaced children continues to be among the most under-funded sectors in the international response to conflict-induced emergencies. In addition, educational opportunities for displaced children and youth are usually limited to primary school¹⁹.

Health and Nutrition

In many conflict and post-conflict situations, IDPs appear to be significantly more vulnerable to malnutrition and diseases than local residents or other war-affected people. Having been forced to leave their homes, IDPs generally have no access to agricultural land and only limited opportunities to earn enough money to buy food and get access to health care. Overcrowding, poor sanitary facilities and lack of access to clean water increase the likelihood of spreading of dis-

eases in IDP camps and other temporary accommodation. And where IDPs are caught in the proximity of fighting or were forced to flee to remote areas, they are often left without any food supplies and health assistance from their governments or the international community. Non-displaced populations may face similar hardships, such as the effects of drought or war, but they are more likely to have retained resources and coping mechanisms which, as a result of their displacement, may not be at the disposal of IDPs any longer. There are, however, situations in which both IDPs and resident populations are equally affected by lack of food and poor health conditions. And in cases where the displaced benefit from humanitarian assistance not available for other groups in need, IDPs may even be better off than the non-displaced population.

Health and nutrition are the most important indicators to assess the well-being of a population as well as to measure the severity of the effects of war or natural disaster. While the vulnerability of IDPs is widely acknowledged, in most countries no surveys have been carried out to monitor and assess their nutritional and health status, not even in some of the most serious humanitarian emergencies such as Burundi, Côte d'Ivoire, DRC, Indonesia (Aceh), Iraq or Nepal. As a result, there is a risk of the specific nutrition and health needs of IDPs being overlooked and assistance being inadequate if delivered at all.

IDP-specific nutrition surveys have been carried out only in few countries, including Burma (Myanmar), Congo-Brazzaville, Eritrea, Ethiopia, Somalia, Sudan and Uganda. All of these countries were undergoing serious crises, marked by a combination of armed conflict, displacement and/or natural disaster, and malnutrition rates among IDPs were significantly above the critical 15 per cent threshold set by the World Health Organisation to define emergency situations²⁰.

In at least a third of the countries affected by internal displacement, hosting some 19 million IDPs, the majority of the displaced lacked access to clean drinking water and adequate sanitation facilities, which in turn had a negative impact



Displaced girls awaiting feeding at a women's centre in an IDP camp in Bauchi, Nigeria.
Photo: Global IDP Project/Claudia McGoldrick

on their health status. In fewer than half the countries did IDPs generally have access to these basic facilities, mainly in Europe and Asia-Pacific (prior to the tsunami disaster).

Insecurity is another factor influencing the nutritional and health status of IDPs. In at least 17 countries, fighting or landmines significantly obstructed the delivery of food and medicines to IDPs in 2004. In several countries, including DRC, Iraq, the Palestinian Territories and Sudan, health facilities and humanitarian convoys were attacked by military forces.

In 2004, large numbers of IDPs continued to suffer or die from preventable and treatable diseases. Although IDP-specific health surveys are generally unavailable, anecdotal evidence suggests that diarrhoeal diseases, acute respiratory infections, tuberculosis and malaria (in many of the sub-Saharan African countries) are among the most prevalent diseases affecting the displaced. Cholera is recurrent in countries such as DRC, Somalia and Uganda, while measles was reported among IDPs in Somalia and Sudan. Post-traumatic stress disorders were observed in many countries, including Nigeria, the Palestinian Territories and Sudan, but mental health problems among IDPs were rarely monitored systematically, let alone treated.

Information on the mortality of IDPs was available in only a few countries. The existing data shows extremely high mortality rates among IDPs in Sudan, Uganda and Congo-Brazzaville. With more than two of each 10,000 displaced people dying there every day, these situations qualified as emergencies as defined by the UN Standing Committee on Nutrition²¹. In Angola, Burma (Myanmar) and Somalia the mortality rate was at alert level, at above one death per 10,000 people per day.

Malnutrition and mortality rates are typically higher among populations with a high prevalence of HIV/AIDS. HIV/AIDS further undermines the coping capacity of IDP communities, including by reducing the number of adults able to contribute to household incomes or working in the fields, therefore increasing food insecurity. In addition, people living with HIV/AIDS often suffer from discrimination, further restricting their ability to work. The displaced are considered to be at greater risk of contracting the virus than other populations, mainly because displacement is generally accompanied by the disruption of family and social structures, high proximity in overcrowded camps, an increase in sexual violence, high mobility and lack of access to prevention and treatment. Yet data on HIV/AIDS prevalence



A water point in one of the camps for Chechen IDPs that were closed down by the Russian authorities in 2003 and 2004. In many situations, IDPs do not have adequate access to clean drinking water.
Photo: UNHCR/T.Makeeva

rates among IDPs does not exist in most countries, not even for high-risk countries with high HIV/AIDS prevalence among the general population combined with large IDP populations, such as Burundi, Ethiopia, Côte d'Ivoire, Liberia and Kenya.

The little available information shows that areas affected by war and displacement often display significantly higher HIV/AIDS prevalence rates than the rest of the country. In Gulu in northern Uganda, for example, the prevalence rate was 13 per cent, twice as high as the national average. In eastern DRC the HIV/AIDS rate was reported to be 20 per cent in 2002, four times higher than the national level. Twenty-five percent of displaced farm workers in Zimbabwe were reported HIV-positive in 2003.

In over half of the countries affected by internal displacement, the majority of IDPs, as well as the population at large, had no access to adequate health care in 2004, mainly because of the breakdown of health serv-

ices in war-affected areas. In addition, lack of financial resources seriously limited the ability of many IDPs to get proper medical care. In several countries, including Burma (Myanmar), the Palestinian Territories and Somalia, IDPs faced discrimination or restrictions of their freedom of movement with regard to access to health, often because of their ethnic origin.

Even in situations where conflicts have ended, the nutrition and health status of IDPs sometimes remain at emergency level for a long time, mainly due to the poor access to water and sanitation, as well as to appropriate preventative and curative health services. In post-conflict situations, the degree to which IDPs' nutritional and health conditions can improve is dependent on their capacity to cope with and recover from traumata and the loss of assets, but also on the political will and effective investment of the state and international donors, to sustain recovery and compensation programmes, towards more equitable development in previously marginalised areas.



A returnee woman cleans dishes outside of her home in the relocation village of Tharanikulum, Sri Lanka. Photo: UNHCR/R.Chalasani

Property Issues

Home and land are the first things displaced people lose when they are forced to leave their place of origin. Once peace is restored and the security situation improved, IDPs often face considerable difficulties in repossessing their homes and land, which in addition are often either destroyed or occupied by other people. This situation is a common feature of most post-conflict environments. It constitutes a serious obstacle to return and tensions arising from property disputes present a clear threat to post-conflict stabilisation.

In many cases disputes over land are at the origin of the conflict as in Bangladesh, Guatemala or Rwanda. In Kenya and Zimbabwe people were displaced so that their land could be given to political supporters of the regime or exploited by the authorities. In other conflicts such as Bosnia and Herzegovina, displacing people was an objective in itself and attacks against people's homes were an essential component of that strategy.

The Guiding Principles on Internal Displacement clearly recognise the right of IDPs not to be displaced out of their homes arbitrarily (principle 6), the right not to be arbitrarily deprived of property and possessions (principle 21) and the right to return to their homes voluntarily and in safety and with dignity (principle 28). They also reiterate the right of IDPs to restitution or, if not possible, compensation (principle 29). In addition, principle 9 emphasises the special dependency and attachment to land of certain groups of IDPs which creates a particular obligation to protect these groups from displacement.

In recent years, there has been growing recognition that property restitution is an essential element of return, as the repossession of their homes and land provides returnees with shelter, improves their self-reliance capacities and therefore protects them from poverty. Consequently, provisions for the resolution of property and land problems have been included in peace agreements or documents setting up the post-conflict environment in 14 of the countries affected by internal displacement²². In most of these cases, institutions were set up to process claims and resolve disputes²³. However, examples like Bosnia and Herzegovina, where over 90 per cent of IDPs have been able to repossess their property by September 2004 are more the exception than the norm. Elsewhere, restitution



A man rebuilds his house destroyed during clashes that displaced thousands of people in Yelwa, Nigeria. Photo: Global IDP Project/ Claudia McGoldrick

processes have been less successful for reasons ranging from the lack of will and/or hostility of the authorities, to the weak role or position of the international community, and the fragility of the rule of law and state authority inherent to post-conflict situations.

The increasing attention to restitution programmes also reflects the recognition that unresolved property disputes constitute a serious source of tension which will not fade away with time. Access to one's home or land is too vital for IDPs to renounce it. In Iraq and Kenya for example, after decades of displacement and in the absence of any fair and efficient repossession framework, some IDPs desperate to return have decided to take the situation in their own hands and have used violent means to expel the occupants of their houses and land, thereby creating a new wave of displacement.

In 2004, most IDPs were still facing serious obstacles to return due to the difficulty of repossessing their house or land. In Africa disputes over land are often at the root of conflicts, particularly between pastoralist and farming communities, and little progress was made in addressing them. The current trend to move from customary land tenure and communal ownership to a title deed regime through privatisation of land, for example in Angola, Côte D'Ivoire, Kenya, Nigeria, Rwanda and Uganda, is likely to create further tensions since the most vulnerable of the IDPs, particularly

the poor and women, are likely to be left out of the process. In Asia, property commissions have been set up in Bangladesh and Sri Lanka, but very few cases of repossession were reported.

In the Middle East, Iraq experienced new displacements following the collapse of the previous regime due to the unresolved property situation in the north of the country. A Property Claims Commission was established in January 2004 but has yet to become operational.

In South America, access to land is at the same time the origin of the conflict and the main obstacle to return and reconciliation. The region has a long history of concentration of lands in the hand of large landholders and companies at the expense of the indigenous population which was regularly a victim of expropriation and forced evictions. The indigenous represent the overriding majority of the internally displaced in the recent conflicts. Peace processes and agreements reflect the clear understanding that addressing the land issue is key to stability and reconciliation. Agreements or legislation in Colombia, Guatemala and Peru include reference or mechanisms for repossession and compensation for IDPs and the most vulnerable. In May 2004, Peru adopted a law on internal displacement addressing, inter alia, repossession of land. However, in spite of progressive legal frameworks with no equivalent in other regions, there has been little progress

in repossession or distribution of land due to political resistance and economic interests. For instance, essential elements of the peace accords in Guatemala, in particular land-related issues, were not implemented in 2004 as foreseen.

On the positive side, the recognition of these rights has created expectations among IDPs and stimulated the work of NGOs and associations of IDPs who are actively supporting people in their effort to repossess their land through legal assistance at national level or before the Inter-American Commission on Human Rights²⁴. In February 2004, a first regional seminar on internal displacement in the Americas was organised in Mexico, bringing together governments of the region, international organisations and associations of IDPs. The seminar issued a framework for action with a series of recommendations, including on the development of legislation related to land title and tenure as well as compensation and restitution of property lost or damaged during displacement.

In Europe, the property restitution process in Bosnia and Herzegovina has been a clear success, while other countries in the region have made much less progress. Croatian authorities accelerated the pace of private property repossession, but have done little to condemn and prevent the looting of properties by the temporary occupants ordered to leave. In addition, the housing programme designed to support tenants of socially-owned flats who lost their tenancy rights due to their displacement has not been functioning. In Kosovo, almost 80 per cent of the property claims had been processed by the end of 2004, but only 30 per cent of the decisions were actually implemented²⁵. Also, illegal occupation of houses and damage to properties remained widespread.

The past year was also marked by the rejection of the UN plan for the resolution of the conflict in Cyprus, which would have enabled most IDPs on the island to repossess their properties or receive compensation. The plan struck a delicate balance between the rights of the dispossessed owners and those of current occupants. Since its landmark judgement in the *Loizidu* case²⁶ in 1996, the European Court has played an important role in confirming the right to home and enjoyment of peaceful possession. Greek Cypriot IDPs alone have filed over 100 property-related cases with the Court. In two recent judgements, the Court also condemned Turkey to pay compensation to Turkish citizens of Kurdish origin for their forced displacement and the destruction of their homes. The Court found

Turkey responsible for the violation of the right to peaceful enjoyment of property²⁷. Turkey adopted a law on compensation of destroyed properties in July 2004, as did the Russian Federation, but in both cases this has not shown significant results.

At the global institutional level, the Special Rapporteur on housing and property restitution in the context of the return of refugees and internally displaced persons, Paul Pinheiro, proposed draft principles on housing and property restitution for refugees and displaced persons²⁸ in June 2004. The principles, which are based on existing rights and lessons learned from various restitution programmes, represent an important new tool that can be used by states and international organisations in designing restitution procedures, mechanisms and legal frameworks.

In a similar effort to improve the consistency and efficiency of restitution programmes led by the UN, several international agencies and property experts are currently discussing the possible integration of property rights into the UN policy and operational framework.



Displaced women from southern Somalia with their belongings after their eviction by Somaliland authorities from a public park in Hargeisa where they temporarily settled. Photo: Global IDP Project/Cathy Benetti

Shelter and Housing

As stipulated in the Guiding Principles on Internal Displacement, IDPs have the right to an adequate standard of living, including shelter and housing²⁹. However, inadequate housing, with the ensuing loss of security, exposure to health risks and lack of protection from climatic conditions, is one of the most common problems faced by internally displaced people. In addition to carrying with them the psychological trauma of having been forced to leave their homes, IDPs also often have to cope with precarious shelter situations in their place of refuge. In IDP camps throughout Africa, plastic sheeting often constitutes the only protection against heavy rain or burning sun. In other countries, such as Burma or in the DRC, internally displaced live for

months without shelter altogether, hiding in the forest from military or militia forces. In some situations, IDPs also face threats of eviction from their place of refuge. In Iraq, where over 80,000 IDP and returnee families currently live in camps or public buildings, many will have to leave as authorities reclaim public property back³⁰.

Temporary shelter often becomes a long-term solution. The displaced end up living for years in tents, collective centres or other inadequate shelter structures that were intended only for the initial phase of the emergency. In countries with extreme climatic conditions, this problem is particularly acute. In Afghani-

stan, the Russian Federation and the Caucasus, for example, many IDPs are forced to live through cold winters in wholly inadequate shelter, causing severe health problems and even death, particularly among children and the elderly. In Algeria, Colombia, Turkey and other countries, millions of IDPs having fled from rural areas to the relative safety of urban centres have ended up in overcrowded slums without proper sanitation or other infrastructure. Most are forced to build their own shelter with whatever material is available or share rooms with relatives without receiving any assistance.

While emergency shelter and longer-term housing ought to be a prominent element of assistance strategies targeting IDPs, very little information is publicly available about the shelter situation for internally displaced populations. After years of collecting information, the Global IDP Project's database contains less than ten in-depth studies of the shelter situation for internally displaced people in different countries. For most situations, shelter information is non-existing or only mentioned briefly in assistance plans and reports. However,

several international initiatives have been taken during the past few years to improve and develop common tools for implementing settlement and shelter strategies for refugees and internally displaced people³¹.

The post-conflict phase where the focus moves to reconstruction of communities destroyed by conflict is by far the most resource demanding, but also the most neglected in terms of assistance strategies and funding. Housing reconstruction can be a crucial incentive to return and resettlement and contribute to the rebuilding of disrupted communities³². In situations where houses have been destroyed on a massive scale, such as in Bosnia and in Sri Lanka, housing reconstruction for returning IDPs and refugees is an essential component of the peace process, implying international and governmental engagement on a massive scale. In many other situations, however, IDPs return to find their houses destroyed or occupied by others, but receive only very limited assistance or no help at all to restart their lives.



Returnees constructing huts on a resettlement site in Hargeisa, Somaliland. Photo: Global IDP Project/Cathy Benetti

Public Participation of IDPs

In many countries, IDPs are reduced to the role of silent victims, as they have little to no opportunity to act as partners with public institutions in charge of their protection or simply voice their concerns to the authorities. Internal displacement occurs mainly in countries where political rights and civil liberties are denied to the population in general and/or to minority groups in particular. Out of the 58 independent countries or disputed territories with IDPs, 48 are rated as “not free” or “partly free” regimes by Freedom House³³. Countries like Sudan, Burma, Syria and Turkmenistan appear among the countries with “virtually no freedom” in 2004, leaving no space to the free expression of IDPs and their advocates and excluding any possibility for partnership between IDPs and the authorities. The absence of opportunities for free expression and participation is not only one of the root causes behind some of the displacement crises. It is also a common threat to the protection of IDPs during their displacement and compromises durable solutions.

In countries where democratic expression is possible to some degree, IDPs are generally still subject to discriminatory practices or policies impeding the enjoyment of political rights. Some governments have taken measures to facilitate the participation of IDPs in elections. In Afghanistan, special information and registration campaigns targeting marginalised displaced Kuchi communities were conducted in preparation for the presidential elections in October 2004. In India, media reported arrangements made to ensure the participation of IDPs in camps in local elections held in Kashmir in March and May 2004. However, the rule remains that the majority of IDPs cannot exert their right to vote as other citizens do. A recent survey confirmed that IDPs still face various obstacles to voting in Europe and Central Asia, including lack of documentation, restrictive residence requirements, inadequate arrangements for absentee voting, lack of timely information and intimidation³⁴. Guiding Principle 22 insists that the prohibition of discrimination against IDPs also applies to the right to vote or participate in governmental and public affairs, whether IDPs live in camps or not.

Despite the lack of a democratic environment, IDPs and NGOs have been immensely inventive in exploring other, non-political channels of expression and participation to make their voice heard and assert their demands. The participation of IDPs in the design, implementation and monitoring of assistance pro-

grammes is accepted as a key principle for aid actors³⁵. Beyond their participation as aid beneficiaries, IDPs have increasingly become visible actors in civil society and step forward in the public forum to raise the attention of authorities and other relevant actors, often with the support of humanitarian agencies and NGOs. IDP organisations in Colombia, Guatemala and Peru have become efficient advocates of their own cause, at local and national levels, despite the risks to their leaders’ physical security. In the Philippines, the contribution of IDPs and their advocates in the efforts to reach and monitor the ceasefire between government forces and rebel groups has been critical.

However, the impact of the voice of IDPs is limited by problems common to many situations. Displaced communities create associations to maintain community links in exile and promote their interests locally. This results in a myriad of groups which often fail to coordinate their positions and initiatives to reach actors at the national level, as in Bosnia and Herzegovina or Serbia and Montenegro. Many IDP organisations are also susceptible to politicisation, deterring humanitarian and development agencies from providing capacity-building assistance or other kinds of support. Also, the lack of established communication channels between IDPs and authorities prevents IDPs from giving their contribution in the formulation and implementation of national IDP policies. In a country like Azerbaijan, where IDPs have been displaced for more than ten years, there is still no official forum for a regular exchange between authorities and IDP representatives.

Much remains to be done to support the participation of IDPs at local and national level. In the first place, government institutions should take the initiative to reach out to the IDP population in the country and stimulate their participation. The national human rights commission of Kenya, for example, coordinated the creation of a national IDP network in 2003 and 2004, in order to help displaced communities raise their protection concerns and strengthen the authorities’ accountability. International agencies and NGOs have also a crucial role to play in this regard. In its IDP policy, the US development agency USAID has pledged not only to engage IDPs as planners, implementers and beneficiaries of its programmes but also to empower the displaced by facilitating their integration in host communities and strengthening their access to justice and democratic processes³⁶.

IDPs and Peace Processes

The global debate on peace and security has repeatedly stressed the importance of civic participation in successful peacemaking, asserting that broad-based participation may in itself be a means of encouraging post-conflict reconciliation and ultimately a more democratic society. The traditional approach to peace mediation in civil wars – governments and rebel groups being brought to the negotiating table often by a foreign mediator – generally excludes non-combatants, and may therefore produce a peace agreement over which civil society has no sense of ownership and which is less likely to be sustainable. It follows therefore that for peace processes to effectively address issues pertaining to internal displacement – such as return and resettlement, property restitution and compensation – IDPs themselves should be involved in the negotiations. But this is very rare in practice, at least on any thing more than a superficial level.

A great many peace agreements in recent or ongoing conflicts include specific provisions on IDPs. Of 19 countries affected by internal displacement that have formal peace agreements, 15 refer explicitly to IDPs – mostly in terms of ensuring their return/resettlement and rehabilitation. But this on its own has at best never been more than the very first step towards a sustainable peace. For example, the 2000 Arusha Agreement for Burundi³⁷ deals with return, resettlement and rehabilitation of IDPs, but the National Commission set up to implement the necessary measures has lacked the resources to do so. The 2001 Tripoli Agreement between the government and MILF rebels in the Philippines³⁸ provides for, inter alia, “all the necessary financial/material and technical assistance [for IDPs] to start a new life” – but repeated outbreaks of fighting as well as a lack of resources have ensured these provisions remain unfulfilled. And in Côte d’Ivoire, the French-brokered 2003 Linas-Marcoussis Agreement³⁹, while not specifically mentioning IDPs, does address key issues of citizenship and the status of immigrants that have been a root cause of displacement, but in the absence of genuine political will nothing has been achieved.

Beyond peace agreements, other post-conflict provisions for IDPs – contained, for example, in a government return/resettlement strategy – are often at best only partially successful, arguably in many cases because they impose a political solution on IDPs that fails to take into consideration their particular needs and concerns. National return and resettlement strategies in both Sierra Leone (2002) and Liberia (2004), for example, have been criticised mostly by NGOs for being politically driven, encouraging premature return in the absence of effective security in order to portray a semblance of peace and stability (to donors and voters, in Liberia’s case ahead of October 2005 elections). In Angola, up to 70 per cent of some four million returnees have gone back outside of the “Norms on the Resettlement and Return of Displaced Populations” adopted by the government in 2002, often returning to areas completely lacking infrastructure and services, littered with landmines, and without any assistance to rebuild their livelihoods. In Sri Lanka, although there are numerous post-conflict plans focusing on IDP return, rehabilitation and reconciliation, the fragility of the ceasefire agreement and of the peace process in general has discouraged both IDP return and donor funding for development projects. And in Colombia, which has some of the most progressive IDP legislation in the world, in the absence of security in return areas and means to rebuild livelihoods, the displacement crisis remains one of the world’s worst.

Efforts to include IDPs in peace processes have likewise met with limited success. In the Philippines, NGOs and local organisations have tried to push for the participation of IDP representatives in the peace process, without great result. In Afghanistan, a Displaced Persons’ Council was set up in 2003 aimed at increasing the participation of IDPs in the return planning process, yet conditions for large-scale sustainable return are simply not in place. In the vast majority of cases IDPs are passive recipients of an agreement imposed from above, that does little if anything toward addressing the root causes of the conflict that forced people to flee their homes in the first place.

IDPs and Peacekeeping

As not many years have passed since internal displacement was recognised as a major international concern, it is only recently too that IDPs themselves have impacted on the mandate and practise of peacekeeping missions. The UN Security Council has authorised more peacekeeping operations since the early 1990s than it had done in the previous 40 years. Early operations were based on the traditional approach of peacekeepers simply keeping two warring factions apart, avoiding involvement with civilian protection⁴⁰. This often had disastrous consequences, as in Rwanda and Bosnia and Herzegovina, where thousands of IDPs were massacred in each place.

It was only in April 2000 that the Security Council officially recognised for the first time that violations of international humanitarian law and human rights may pose a threat to international peace and security, and with it the need to provide adequate mandates and resources to peacekeeping missions to protect civilians under imminent threat of physical danger. Resolution 1296 notes that the overwhelming majority of IDPs and other vulnerable groups in situations of armed conflict are civilians and, as such, are entitled to the protection afforded to civilians under existing international humanitarian law. This reflected a growing recognition that impartiality in peacekeeping should not be equated with non-involvement where civilians (including IDPs) are in danger. At the same time there was an increase in special training given to peacekeeping troops – both within the militaries of troop-contributing countries and externally, such as the US-run training programme (ACOTA) given to African peacekeeping troops in which the UN Guiding Principles figure prominently.

While there has been undoubted progress in recent years in the protection of IDPs by peacekeeping missions, standards continue to vary widely. Of the 16 UN peacekeeping operations deployed worldwide at the end of 2004, seven were in Africa (which in turn has more IDPs than the rest of the world put together), so critical attention has often been focused there.

There are positive examples from peacekeeping missions in various countries of flexibility in response to

concerns expressed by humanitarian actors and local populations, and of courageous actions of troops who in difficult circumstances have managed to save the lives of fleeing civilians. Just two examples of this are UNMIL in Liberia, which at various times has dealt forcefully with rebel forces over the harassment of IDPs, and MONUC in DRC, which has been praised for improving humanitarian access to IDPs and circulating useful information on IDP-related issues. However, both have suffered major shortcomings. Despite being the largest current peacekeeping operation in the world, with around 15,000 troops, UNMIL still does not have a presence in remote rural areas where human rights abuses have been continuing unabated, thereby inhibiting IDP return. MONUC, despite its beefed-up Chapter VII mandate (following its failure to halt the massacres of hundreds of civilians in eastern DRC in late 2002), was criticised for failing to protect IDPs seeking refuge in its compound during the outbreak of fighting in the South Kivu town of Bukavu in May–June 2004. This was followed in November 2004 by a UN investigation into allegations of gross sexual misconduct towards civilians by MONUC members. In Burundi, the peacekeeping mission (ONUB) similarly has a Chapter VII mandate designed to protect civilians and includes the task of facilitating the voluntary return of IDPs and refugees. In Sudan, the mandate and size of the African Union's mission (AMIS) was expanded in October 2004 to give it a more protective role towards civilians and humanitarian actors.

Peacekeeping operations in Europe have also had mixed results. While the NATO-led Stabilisation Force in Bosnia and Herzegovina has at times been accused of not intervening in ethnic clashes, routine patrolling of areas of minority return has contributed to an increased sense of security among returnees. And in Serbia and Montenegro, while KFOR troops have been criticised for failing to protect Serb and other minorities during ethnic clashes in Kosovo in March 2004, there is also widespread opinion that KFOR is essential to maintaining at least a semblance of security and that IDPs would be in a much worse situation without its protection.

Urban Displacement

In many countries affected by internal displacement, insecurity and violence have prompted an exodus of people from rural to urban areas. Large numbers of IDPs flee to the relative safety of nearby cities where they join their families and friends, or find refuge in shanty towns, often under precarious conditions and sometimes still confronted with violence.

Some countries experiencing civil war, especially in Africa, have seen an explosive urban growth rate as millions of people have fled to the cities in order to escape violence in unprotected rural areas. In most cases, conflicts accelerate rural poverty, thereby increasing migration to urban centres of impoverished farmers who can no longer survive in the countryside. In Algeria, cities close to the conflict areas absorbed more than one million people during the civil war which has created an acute lack of housing and an explosive growth of shanty towns. In Sudan, millions of people have fled to urban centres where they receive no assistance.

In Latin America, the majority of Colombian IDPs have streamed to the cities, a trend that was seen also in Guatemala and Peru. In Nepal, too, the majority of the IDPs have flocked to the main urban centres, in particular to Kathmandu, where women and children face serious protection risks. The influx of the majority of Afghan IDPs into Kabul put a huge strain on basic services in the capital. In the Middle East and Europe, too, internal displacement has been paralleled by rural-to-urban migration.

Cities and towns may be safer than rural areas, but the internally displaced face additional hardship as rapid and large population increases often cause overcrowding and congestion. To gain a livelihood in cities is a major problem many of them, especially for unskilled agricultural workers. In most situations, public services are either underdeveloped or non-existent, leaving local authorities incapable of providing basic sanitation, water, health care and schools. In countries where the displaced receive international assistance, urban IDPs often live in poorer conditions than the displaced in relief camps. Hundreds of thousands of IDPs and refugees also live in cities where infrastructure and houses have been severely damaged by conflict and where they are in particular need of official recognition and assistance with housing and social services.

Attempts to counter the exodus to the cities by discouraging urbanisation and providing incentives for return and development of rural areas have often proved inefficient, either because insecurity persists or the rural areas remain impoverished, persuading the displaced that they are better off in the cities. Also, many internally displaced people have no intention of returning to their places of origin as war has ravaged their houses and fields, destroying any hopes for return to their normal lives.

In most countries, very little is known about the scope of urban displacement and the living conditions of urban IDPs as no surveys exist and most of the displaced do not receive assistance. Although it is widely acknowledged that IDPs often choose to move from camps to towns or flee directly to urban areas, virtually all information that is available on most internal displacement situations is based on information from relief camps or rural areas.



A boy drinks water from a broken pipe in the slums of Freetown, Sierra Leone. Millions of IDPs flee to the relative safety of bigger towns and cities where they often end up in slums with the urban poor. Photo: Reuters/Luc Gnago, courtesy www.alertnet.org

Development-induced Displacement

While an estimated 25 million people are displaced worldwide by conflict, the number of people uprooted by development projects is thought to be much higher⁴¹. A study published in 2000 estimated that between 40 and 80 million people had been forcibly displaced so far by large hydroelectric projects alone⁴². Other development projects forcing millions of people to resettle off their land each year include urban infrastructure projects, expansion of transportation networks, mines, oilfield exploitation and even park and forest reserves.

Development-induced displacement is a phenomenon that affects many countries, but its negative effects are currently mostly felt in non-Western states. In the last few decades, these countries have often relied on big, capital-intensive infrastructure projects seen as a catalyst of a Western-type development. Central to this development model are large-scale projects such as dams, aimed at meeting two key elements of development – water and energy needs.

There are currently some 40,000 large dams across the world, more than half of them in China⁴³. In the same country, the largest dam in the world – the Three Gorges project – currently under construction will have displaced up to two million people when it is completed in 2009. India, the world's third largest dam constructor, has reportedly the largest number of development-induced displaced people – some 20 million according to various estimates. While the construction of dams accounts for the majority of the displaced, mining and industrial projects have also forced millions out of their homes and lands⁴⁴.

Indigenous groups and ethnic minorities particularly affected

Studies on the social impact of development projects suggest that indigenous groups and ethnic minorities are disproportionately affected. Coming from politically marginalised and disadvantaged strata of society, these groups often end up neglected and impoverished.

In India, the Adivasi tribal people, although only representing eight per cent of the total population, make up 40-50 per cent of the displaced. In Nepal, indigenous groups displaced by a dam on the Kaligandaki river have lost their land and livelihood and have reportedly been inadequately compensated. The livelihood of an estimated 35,000 indigenous Ibaloi people is threatened by the construction of the San Roque Dam in the Philippines⁴⁵. Mon, Karen and Tavoyans in Burma are probably among the worst off, displaced by large infrastructure projects and subject to forced labour and abuses by the military.

Opposition from civil society organisations is often met by repressive and violent measures by state authorities and by the silent approbation of multinational stakeholders not too interested in details of the negative social impact of profitable projects. In Guatemala, the construction of the Chixoy Dam in Rio Negro in 1982 caused not only displacements but also massacres of scores of villagers. Twenty years later, victims and survivors are still seeking adequate compensation.

Conflict- or development-induced displacement?

In some cases, the exploitation of natural resources has not only uprooted ethnic groups from their lands, but also planted the seeds for bloody conflicts leading to further displacement. In Bangladesh, the construction of the Kaptai dam in the early 1960s led to the

displacement of some 100,000 people, the majority of whom were tribal Chakma in the Chittagong Hill Tracts. Accompanied by inadequate compensation and resettlement schemes, this event contributed to fuelling the conflict in the area. In oil-rich Nigeria, the government has been accused of depriving ethnic groups of their land and resources leading to clashes with government forces and the forced displacement of ethnic Ogoni. In Sudan's Western Upper Nile region, the government has been accused of using proxy militias to depopulate the oil areas of Dinka and Nuer communities to make way for further oil exploitation.

Elsewhere, government-led exploitation of natural resources and the neglect of the interests of local populations have led to confrontations articulated over larger political claims such as autonomy or independence from the central government. This is the case in Indonesia's Aceh province, where the government has been fighting separatist rebels for the past 28 years. In the Philippines' southern island of Mindanao, the areas of contention between the MILF rebels and government forces are rich in natural resources, yet the region, predominantly inhabited by Muslims, lags behind the rest of the island and the country in almost all aspects of socio-economic development⁴⁶.

It could be argued that what is considered by most observers as conflict-induced displacement, for example in Sudan, Nigeria, Aceh or Mindanao, could also be seen as products of development strategies where forced displacement, mismanagement, corruption and unequal distribution of benefits have planted the seeds of conflicts resulting in further displacement.

Displaced and unprotected

Forced to leave their lands and sometimes to give up their livelihoods and culture, the development-induced displaced are seldom offered resettlement and rehabilitation plans that meet the resettlement standards set by multilateral development bodies such as the World Bank or the OECD. Their plight remains largely unnoticed and they often receive even less support from their government and/or international aid agencies than people displaced by conflicts or natural disasters. Many experience traumatic relocation and impoverishment, and often have to wait years before receiving compensation, if any.

The heart of the problem is that development-induced displaced people are generally seen as a necessary sacrifice on the road to development. The dominant perspective is thus that the positive aspects of devel-

opment projects, the public interest, outweigh the negative ones, the displacement or sacrifice of a few. While a change in paradigm has emerged in recent years, with more emphasis put on human rights and social justice, this shift has yet to translate into concrete improvements on the ground.

In 1990, the World Bank developed guidelines to protect those displaced by development projects. The basic principle of the World Bank's Involuntary Resettlement Policy is that the displaced should enjoy some of the benefits of the project and have their standard of living improved or at least not degraded. In practice, however, it has been observed that since 1990 most resettlement and rehabilitation plans have failed to meet these standards⁴⁷.

Walter Kälin, the UN's Representative on the Human Rights of Internally Displaced Persons and one of the drafters of the UN Guiding Principles on Internal Displacement, stated that, although the Guiding Principles were not written to specifically address issues related to development-induced displacement, they are nevertheless relevant as a normative framework for such situations, regardless of whether the displacement was legal or not⁴⁸.

Although there is a close conceptual link between conflict- and development-induced displacement, and both are covered by the Guiding Principles, there has so far been a clear reluctance by international humanitarian actors to address the challenge of development-induced displacement. Apprehensive of defensive reactions from states over sovereignty issues⁴⁹ and reluctant to take on additional responsibilities, UN agencies have so far avoided addressing the issue.

States have the primary responsibility to ensure the protection and welfare of their citizens in cases of displacement caused not only by unpreventable or uncontrollable events, such as war and natural disasters, but also in cases of planned development projects, when negative effects can be identified well in advance and mitigated if not prevented. But where states are unwilling or unable to take adequate measures to protect their citizens against such human-made disasters, the international community has a responsibility to step in.

Regional Overviews

5



A displaced young Sudanese girl chops firewood in Otach camp in southern Darfur, Sudan. Photo: Reuters/Antony Njuguna, courtesy www.alertnet.org

Africa

More people are internally displaced on the African continent than in the rest of the world put together. At the end of 2004, Africa was home to over 13 million of the world's 25 million IDPs. In contrast, Africa's refugee population was estimated at approximately 3.5 million (2003)⁵⁰.

Although the total number of IDPs has remained almost unchanged from the previous year, the continent again saw massive population movements during 2004. Sudan was the worst-hit country with an increase of over 1.6 million IDPs, bring-

ing the total IDP population there to an unprecedented 5-6 million. Large numbers of people were also newly displaced in Uganda which had a total IDP population of up to 2 million people at year's end. At the same time, large-scale return movements continued in Angola where most of the remaining 900,000 IDPs went home and most IDP camps have been closed. In the Democratic Republic of Congo (DRC) about one million IDPs have spontaneously returned home in the eastern parts of the country.

Peace processes with limited impact on IDP situation

There was a note of optimism at the end of 2004 with three African governments trumpeting peace deals that could, potentially, have far-reaching consequences for millions of IDPs. In Sudan, ongoing peace talks between the government and the Sudan People's Liberation Movement/Army (SPLM/A) culminated in the signing of a framework agreement on 31 December that raised hopes for the return of at least some of Africa's largest internally displaced population⁵¹. One day earlier, West Africa's longest-running civil war finally came to an official end after 22 years with the signing of a peace agreement by the Senegalese government and Casamance separatist rebels. Tens of thousands of people displaced by the conflict are now expected to return home. At almost the same time, the Ugandan government and the Lords Resistance Army rebels – who have caused the displacement of up to 2 million people in the north of the country – made ostensible moves towards peace with their first direct talks.

But success was short-lived – in the case of Uganda, where fighting resumed within days and most IDPs continue to live in grim camps – or offset by failures elsewhere, as in Sudan where the conflict in the western Darfur province escalated yet further. About one million people were displaced there in 2004 alone as a result of attacks by government-backed militia.

Most of them continue to be exposed to grave human rights violations and dire humanitarian conditions.

The Darfur conflict was excluded from the peace process between the Sudanese government and southern rebels, and the lack of progress made at the separate talks on Darfur in Abuja meant that there was no end in sight for the insecurity and hunger faced by IDPs in the region.

Elsewhere, there were numerous examples of fragile "peace processes" that failed to bring any dividend for IDPs. Tenuous talks between the government and northern rebels in Côte d'Ivoire disintegrated completely, dashing hopes for the safe and sustainable return of some 500,000 internally displaced persons. In the DRC, where the transitional government formed in June 2003 is an uneasy alliance of erstwhile enemies that lacks the genuine political will to implement reforms, fighting resumed in the eastern Kivu provinces and in the north-eastern Ituri district, and resulted in the renewed displacement of tens of thousands of people. In Liberia, the peace accord of August 2003 which ended months of intense fighting has yet to assure adequate security and humanitarian conditions for the sustainable return of more than 300,000 IDPs. In Somalia, where the transitional government established in late 2004 has not yet managed to impose its authority, local conflicts continue to displace people – although not on the same massive scale as in the mid-1990s. And the border demarcation process agreed as part of a peace deal to end the war between Eritrea and Ethiopia in 2000 has still not begun, preventing the return of thousands of IDPs on both sides.



An IDP resettlement site in Baram, Bauchi state, Nigeria. Photo: Global IDP Project/Claudia McGoldrick

But in some countries ongoing peace processes did lead to improved conditions that allowed for the return of hundreds of thousands of IDPs. In Burundi, more than half of the IDP population has returned within the last two years following significant improvements in the political and security situation. This was despite various hitches, including the refusal of one of the rebel groups to join the peace talks, as well as regional instability. In the DRC, the overall number of IDPs decreased for the first time since the mid-1990s following the return of around one million IDPs, mainly in the provinces of Ituri, Maniema and Katanga. The return process of around 4 million IDPs in Angola has come to an almost complete end, and the government decided to close all remaining IDP camps by the end of 2004.

Causes and patterns of displacement

Internal displacement in Africa is often caused by conflicts resulting from struggles for political and economic power or control over natural resources between rival groups. Rebel movements find it easy to operate and gain support within weak states that are dominated by small elites and lack functioning democratic institu-

tions, public services and law enforcement structures. In the civil wars plaguing the continent, both governments and rebel groups forcibly displace populations as a tool to increase control over them, or deprive an adversary of a support base. In Burundi, the Tutsi-dominated government in 1998-99 forced large numbers of Hutus into camps guarded by government forces, allegedly to protect them from attacking rebel groups. Similarly the Ugandan government in 1996 peremptorily ordered significant parts of the Acholi population in northern districts into camps as part of its strategy to separate them from rebels operating in that area.

Competition for access to grazing ground, water points and farmland among pastoralist and agricultural communities is also a significant cause of displacement in countries such as Ethiopia, Kenya, Nigeria, Uganda, Somalia, Sudan and Zimbabwe. Control over natural resources such as oil and diamonds are in some of the countries on the continent decisive factors causing internal displacement. In Sudan and Nigeria, for example, government-backed militias have forcibly depopulated oil-rich areas.

Many of the continent's conflicts causing internal displacement also have a regional dimension and are sustained or fuelled by external factors, particularly in countries with rich natural resources. This includes cross-border support for armed groups or rebel movements by hostile neighbouring governments. The conflicts in the West African states of Liberia, Sierra Leone, Guinea, and – more recently – Côte d'Ivoire have all been intertwined, with the rebels in each of these countries at some point having been backed by one or more neighbouring states. In a similarly complex situation, the war in the DRC was not only fought by numerous internal actors, but also directly involved – at one time or another – nine other countries in the region. Plunder of the DRC's rich natural resources was among the main factors that started the war, further attracting external actors, and thus fuelling the conflict.

However, what initially may be a struggle for access to resources or political power then seems to acquire an ethnic or religious dimension which further exacerbates and complicates the conflicts. In some cases, such as Nigeria, Kenya, Zimbabwe and Liberia, lack of employment opportunities has produced a frustrated and angry underclass of largely unemployed youths that are easy targets for propaganda by aspiring politicians. It is to this disempowered group that ambitious politicians and religious leaders often look for support, instigating violence along ethnic or religious lines, sometimes with large-scale displacements and massive violations of human rights as consequences.



Internally displaced Somalis in an IDP settlement in Bosaso, Puntland.
Photo: Global IDP Project/
Jens-Hagen Eschenbächer

In Sudan, decades of war by proxy between North and South have escalated into major tribal conflicts between different ethnic-based militias, which have undermined the peace process. In the DRC, repeated incursions by the Tutsi-dominated Rwandan army (alleged to be heavily involved in illegal exploitation of the country's natural resources) has led to increasing reprisal attacks against Congolese Tutsis by non-Tutsi groups. In various other countries issues related to ethnicity or religion have effectively been used to cloud the real issue of competition for political power and economic resources – including Congo-Brazzaville and Côte d'Ivoire (in the latter, successive politicians have promoted a xenophobic form of nationalism to curtail eligibility for political power). In both countries, the forced displacement of civilians, mostly women and children, has been one of the most devastating consequences.

Protection concerns

Uprooted from their usual environment and the protection normally afforded by family and social structures, the internally displaced remain one of the most

vulnerable groups in conflict situations and are often deliberately targeted by government forces or rebel groups. Arbitrary killings and other grave human rights violations such as torture, mutilation and rape – inflicted on civilians by both rebels and government troops – have been documented in recent years in nearly every African country monitored by the Global IDP Project. In most cases, such abuses accompanied or directly caused displacement. In Uganda, for example, IDP camps – which are poorly protected by the government – were frequently attacked and looted by the rebel Lord's Resistance Army (LRA) during 2004. In its worst atrocity in nine years, the LRA massacred some 300 IDPs in Barlonya camp in February 2004. In neighbouring Sudan, while the international community prioritised the North-South peace process, Sudanese armed forces and allied militias continued to systematically commit, with impunity, gross human rights violations against IDPs in Darfur and other parts of the country. This has included helicopter gunship attacks, the burning of villages, the destruction of relief sites, large-scale rape, extortion and assaults. In Burundi, too, the peace process has not prevented physical har-



A farmer who has returned to his land in the Pool region of Congo-Brazzaville.
Photo: Global IDP Project/Arild Birkenes

assment, theft of crops and conflicts over land ownership. Internally displaced people, including many children, are often forcibly recruited into military service and slave labour. In the DRC, there continue to be systematic violations of the right to life, physical integrity, freedom of movement and property ownership.

Landmines hamper return

Africa is reported to be the most landmine-infested continent in the world with hundreds of thousands of landmine victims in Angola, Burundi, DRC, Eritrea, Senegal, Sudan, Uganda and other countries. In 2004, landmines continued to hamper the return of IDPs, restricting movement and inflicting grievous injuries. They were still used by governments to terrorise civil-

ian populations and control their movements despite the fact that most African countries have ratified or acceded to the Anti-Personnel Mine Ban Convention.

The presence of mines in agricultural fields renders large tracts of fertile soil unusable and entails grave economic losses for farmers. In Angola, mine infestation and the destruction of infrastructure continued to prevent economic recovery, endanger lives, and impede the delivery of humanitarian and development assistance in most provinces. The war between Ethiopia and Eritrea, which ended in 2000, left a legacy of landmines that has hampered the return process in both countries. Landmines also pose a great challenge to the planning of the return process in Sudan, which is among the ten countries worldwide most affected by mines.

Inadequate national response

Government response towards IDPs across Africa is widely seen as inadequate, not least because in many of the affected countries government forces and pro-government militia have been a principal agent of displacement. This has in many cases been compounded by a widespread lack of good governance, transparency and accountability as well as persistent insecurity. The latter has even prevented the newly-elected central government in Somalia from establishing itself inside the country, precluding any possibility of adequate government response to the assistance and protection needs of IDPs. In the DRC, hundreds of thousands of IDPs in the eastern provinces were beyond the reach of the transitional government due to insecurity. In other countries, such as the Central African Republic, Uganda and Burundi, poor financial capacity was a major factor hampering the governments' response to the plight of IDPs and other vulnerable groups. In countries such as Algeria, Nigeria, Angola, and Congo-Brazzaville, all with sizeable oil revenues, lack of political will or poor governance seemed to be the main obstacles to the governments' response. The result in all these cases was that hundreds of thousands of IDPs were left without the necessary protection and assistance. Unlike in other regions of the world, most notably perhaps Latin America, war-torn African countries generally lack an established civil society that can bring international attention to situations of internal displacement in their countries. One exception, however, may be Kenya – where IDPs are becoming progressively well-organised with the support of national civil rights organisations.



Children play in front of a market abandoned since fighting devastated the Pool region's economy and led to the displacement of hundreds of thousands of people within Congo-Brazzaville. Photo: Global IDP Project/ Arild Birkenes

UN peacekeeping missions and regional African institutions

An increasing number of peacekeeping missions and interventions by individual states, with or without UN mandates, have contributed to ending hostilities, settling conflicts and facilitating the delivery of humanitarian assistance to IDPs. These interventions have in turn prevented further displacements and improved conditions for return.

In the DRC, the UN peacekeeping mission has supported the delivery of humanitarian assistance to IDPs in an environment of lingering insecurity and managed to secure an area which allowed around 40,000 IDPs to return to their homes. In Sierra Leone, UN peacekeepers have helped improve the security situation throughout most of the country, which prompted the return of large numbers of IDPs. And in Liberia, which currently has the largest UN peacekeeping operation in the world, the security situation has improved sufficiently to allow IDP return to at least some parts of the country.

Regional African organisations have also been increasingly involved in conflict resolution, on both a political and military level, with positive consequences for

IDPs. The Economic Community of Central African States (ECCAS) has established a peacekeeping force which has already intervened in the Central African Republic with a certain amount of success. The Economic Community of West African States (ECOWAS) has undertaken peacekeeping operations in Liberia, Côte d'Ivoire, and Sierra Leone – contributing significantly to improving the conditions of IDPs and other vulnerable groups in these countries. The Inter-Governmental Authority on Development (IGAD), a sub-regional organisation comprising seven east African countries has acknowledged the Guiding Principles on Internal Displacement as a “useful tool” for policy-making and called upon the IGAD secretariat to establish a unit to deal with issues of forced displacement, including IDPs. The African Union (AU) is progressively addressing humanitarian initiatives and contributing troops from member states to serve in peacekeeping missions, such as the AU operation in Darfur, despite a lack of funds, equipment and training. The AU is also actively involved in the facilitation of peace talks and political dialogue in various African conflicts. In June, the African Commission on Human and Peoples' Rights appointed a Special Rapporteur on Refugees, IDPs and Asylum Seekers in Africa. This initiative is expected to further advocate for the implementation

of the UN Guiding Principles and their incorporation into national legislation throughout the continent.

However, the impact of regional and UN peacekeeping missions on situations of internal displacement in Africa has been mixed, with general scepticism about their effectiveness remaining high in the wake of the debacles in Somalia and Rwanda in the 1990s as well as recent reports of sexual abuse of children by peacekeepers in the DRC and Burundi. Moreover, the use of force by peacekeeping missions has in some cases negatively affected the impartiality of humanitarian interventions. Warring parties which have clashed with peacekeeping missions seem increasingly inclined to take revenge on easy humanitarian targets. In the DRC, four aid workers were kidnapped and tortured by rebels at the end of the year following the destruction of rebel camps by the UN peacekeeping mission. Aid agencies have also had to suspend activities after attacks on their staff and property. The security of humanitarian workers has also been compromised in countries without peacekeepers, such as Somalia and Uganda, where heavily armed escorts are required to reach the IDPs.

Lack of funding

The humanitarian response to the plight of IDPs in Africa continues to suffer from both lack of funding and a general lack of international attention. However, persistent calls for increased donor support by the UN Emergency Relief Coordinator throughout the year has in some cases resulted in improved response by humanitarian actors. In Uganda the UN has increased its presence and is making a concerted effort to address the plight of the almost 2 million IDPs, to a large extent as a direct consequence of the Emergency Relief Coordinator's repeated calls and requests. He has also consistently highlighted the disparity between the under-funding of African crises and the relatively well-funded humanitarian operations elsewhere – such as in Iraq, Chechnya and more recently the Indian Ocean tsunami disaster. But IDPs in Africa have yet to see an overall improvement in their situation.

Aid flows to sub-Saharan Africa on the whole have shrunk in recent years, leaving most African IDPs in dire humanitarian conditions beyond the reach of international protection and assistance during the various phases of displacement as well as return. By the end of the year only around 50 per cent of the 2004 UN Consolidated Appeal for African countries had been funded⁵² – less than what had been pledged in one

week for the victims of the Indian Ocean tsunami⁵³. Considering that around 40 per cent of post-emergency countries are thought to slide back into conflict⁵⁴, lack of funding remains a serious challenge for the reintegration processes. While donors responded generously to the Darfur emergency, programmes to assist and ensure the sustainability of the return of millions of IDPs to southern Sudan have been neglected. In countries such as Angola, Liberia, Guinea and DRC, where returning IDPs and former soldiers have been left without employment opportunities, there is a risk that increasing tensions could result in a resumption of hostilities and renewed displacements – highlighting the fact that there can be no quick-fix solution to deep-rooted conflicts.



Two displaced children in the northeast of Colombia.
Photo: Global IDP Project/Cathy Benetti

Americas

Some 3.7 million people are internally displaced in Latin America, most of them in Colombia, after Sudan the second largest displacement crisis in the world. While a few hundred people were newly displaced in Mexico, hundreds of thousands fled their homes in Colombia during 2004. Guatemala and Peru were protracted displacement situations by and large forgotten by the international community. With the exception of Colombia, military conflicts have largely abated in the Americas. While civil strife in Guatemala, El Salvador, Nicaragua, Honduras, Haiti and Peru displaced about 2 million people internally and another 1.2 million became refugees during the 1980s and early 1990s, the restoration of peace has been accompanied by large waves of returns.

Despite successful peace processes in many parts of the Americas, the total number of displaced people in the region has almost tripled since 1996, due entirely to the acute escalation of violence in Colombia. The conflict has spilled over Colombia's borders, posing a growing threat to regional stability and straining relations with neighbouring countries. An increasing number of Colombians have been forced to seek protection abroad, but since the terrorist attacks of 11 September 2001 states have adopted increasingly restrictive asylum policies. This particularly affects Colombians, who are often stigmatised as sympathisers of groups labelled as terrorists. However, the 20th anniversary of the Cartagena Declaration in November 2004, during which Latin American governments reaf-



A displaced Colombian man collects leaves in the forest to sell them to flower shops. Photo: Global IDP Project/Cathy Benetti

firmed the Declaration and its expanded refugee definition and committed themselves to reinforce its application, might help reverse current asylum trends. The governments adopted a Plan of Action aimed at improving protection mechanisms and the implementation of durable solutions in the region, and addressing the causes which lead to refugee flows – and internal displacement.

Although the Colombian government initiated a peace dialogue with the United Self-Defence Forces of Colombia (AUC), the negotiations with its main opponent, the Colombian Revolutionary Armed Forces (FARC) have been stalled for nearly three years. During 2004, Colombian troops regained military control over significant parts of national territory, and the government continued to demobilise paramilitary and some guerrilla troops.

Causes of displacement

Conflicts and forced displacement in Latin America originated in growing political and economic marginalisation and unequal access to land and basic services, mainly affecting rural indigenous communities. Indig-

enous people in Peru, Afro-Colombians and Mayan communities in Mexico and Guatemala have suffered disproportionately from displacement.

Violence related to insurgency and counter-insurgency operations has caused large-scale displacement in the region. Latin American societies have often been polarised between indigenous people, who represent the majority of the population in Guatemala and Peru but have been treated as second-class citizens, and the governing elites safeguarding the interests of large landowners and industrialists as well as foreign investors. Often, the demands of political groups denouncing socio-economic inequalities were ignored. This resulted in the emergence of guerrilla movements in the region. Government counter-insurgency operations and military repression of these groups led to mass displacement of civilians.

Often, displacement has been an end in itself rather than a by-product of war: people have been displaced by warring parties trying to seize control of territories rich in natural resources such as oil. In Colombia, both guerrillas and paramilitaries continue to depopulate rural areas and appropriate peasants' lands for political, economic and strategic gain, for the cultivation of

illicit crops or to defend the interests of large land-owners. Armed groups often displace or kill civilians they suspect of supporting the “enemy”. This phenomenon is particularly common when they gain control over an area previously occupied by an opponent.

The proliferation of drug cartels in Colombia and Peru considerably complicates displacement patterns. Guerrillas – and later paramilitary groups – have financed their armed activities with profits from the narcotics trade. The indiscriminate fumigation of food as well as illicit crops has forced tens of thousands of farmers to flee their homes in Colombia. These people are unaccounted for, as they are not officially recognised and registered as IDPs.

Human rights and living conditions

The human rights situation in Latin America remains a cause for concern, and law-enforcement in the region is weak. Landless indigenous populations have been forced to flee brutal political violence, as they have often been perceived by governments as supporters of insurgencies. Stigmatised as subversive, these populations have been the target of violent counter-insurgency reprisals by military and paramilitary groups. In Guatemala, the scorched-earth offensive in the early 1980s, against members of the Mayan population suspected of being linked to the guerrilla movement was described as “genocide” by the Commission for Historical Clarification in 1999. Over 200,000 people were killed or disappeared and others were forcibly relocated into military camps, or coerced to join counter-insurgency defence patrols in the 1980s. Similarly, in Peru the displaced were obliged to join defence patrols or face prison sentences for suspected ties with the terrorist group Sendero Luminoso (Shining Path). The indigenous Asháninkas were massacred or held captive in camps, enslaved and forcibly recruited by the Shining Path. Some 160 families were still held captive in 2003. Since Alvaro Uribe Velez took office as President of Colombia in August 2002, he has pursued a policy of “democratic security”, which aims at cracking down on illegal armed groups by involving civilians in counter-insurgency activities, by arming peasant soldiers and setting up networks of informants. These “security” measures ignore core principles of international humanitarian law by blurring the distinction between civilians and combatants through the militarisation of society. They did not prevent further displacements in 2004.

In response to the lack of government protection, and in order to resist being drawn into the conflict, IDPs in

the Americas have organised into resistance or peace communities over the past decades. In Guatemala, for example, some 50,000 displaced people formed a group called the Communities of People in Resistance. There, as in Colombia, the peace communities and indigenous groups requesting armed groups to respect their neutrality have not been spared from continued attacks, the killing of their leaders, food blockades and restrictions on freedom of movement.

Attacks against human rights defenders in the region continued throughout 2004. In Colombia, leaders of IDP organisations and indigenous communities, human rights advocates, social workers, teachers, trade unionists and church leaders were the targets of attacks and many were forced to flee from their homes. Moreover, since the breakdown of dialogue between the government and the FARC in 2002, violent actions against civilians have multiplied, including forced disappearances, arbitrary detentions and kidnappings.

Many IDPs are denied civil and socio-economic rights. Fearing further attacks or the stigma of being displaced, many IDPs in Latin America do not register with the authorities and prefer to remain anonymous. Without official registration and proper identity documents, IDPs face difficulties in accessing government assistance, employment, health care, education. Their civil and political rights, such as the right to vote, are also restricted and their restitution and property rights undermined.

The vast majority of IDPs in Latin America are dispersed rather than living in organised camps. People of indigenous origin have often fled to isolated regions with little food or medical supplies. Many IDPs in Guatemala, Colombia and Peru have been forced to find minimal shelter in urban slums with impoverished populations. There, they lack most basic services and often face intense discrimination. People of African descent, indigenous people and non-Spanish speakers in particular are often considered unwelcome neighbours by resident populations and the authorities. In Colombia's big-city slums, IDPs continue to be victims of “social cleansing” by paramilitary groups. Increasingly across cities, large sections of the population are being drawn into gang warfare which replicates war allegiances and divisions at the national level. This has led to rising, but largely undocumented intra-urban displacements.

The administration of justice is still weak in the region. Internal displacement in Latin America has often been carried out with near impunity, allegedly with the acquiescence and collaboration of law enforcement

personnel and landowning elites. While the Uribe administration has already demobilised over 6,000 illegal combatants from both paramilitary and guerrilla groups since it took power, government plans to reintegrate demobilised men into the national army may leave crimes against humanity and violations of international humanitarian law unpunished. This could deny the victims of displacement their right to justice and reparation.

Durable solutions

Landless farmers and indigenous communities have actively struggled for their socio-economic rights, including respect for their cultures and rights to their ancestral lands. Some guerrilla groups have defended indigenous interests, with questionable results. In Guatemala, for example, indigenous issues were high on the agenda of the 1996 Peace Accords signed between the government and the Guatemala National Revolutionary Unit (URNG), the rebels' umbrella organisation. But while the URNG evolved into a conventional political party by 1998, the restitution rights of dispersed IDPs are still not recognised and indigenous people remain largely excluded, suffering from extreme poverty, racial discrimination and lack of access to land, according to the Special Rapporteur on Indigenous People. In Peru, the Maoist Shining Path rebels claimed to fight for land reform and equality, but turned into the principal perpetrator of abuses against civilians and indigenous people, who were also targeted by the armed forces suspecting them of supporting the rebels.

Many internally displaced people in Latin America are still struggling to find durable solutions to their plight. The Guatemalan 1996 Peace Agreements included provisions on return and reintegration, but IDPs who had taken refuge in cities or who were dispersed across rural areas rather than organised, were not included in return programmes. Similarly in Peru, most IDPs have returned by their own means because the government refused to assist families who did not permanently settle in areas of return. This was the case for many indigenous people who traditionally migrate to urban centres in search of seasonal work. As a result, it is unclear how many IDPs have returned or reintegrated elsewhere and how many still require assistance and reparation. In Mexico, thousands have returned, but many still live under threat of paramilitaries and have not been compensated for lost land and property. Durable solutions for displaced Colombians will be hard to achieve as long as the war is ongoing. The return of IDPs has been the priority of the current Colombian administration, sometimes regard-

less of the presence of armed groups and despite the fact that the conditions which caused displacements remained unchanged. Many opted for return because of the lack of assistance available in areas of refuge. The demands of displaced people in the region to have their land rights legalised, regain their properties, and to have better access to health and education in order to rebuild sustainable livelihoods, remain a challenge to their governments.

National, regional and international responses

Governments in the Americas have increasingly acknowledged the problem of internal displacement and set up national bodies to deal with the issue. However, they often failed to allocate sufficient resources to these institutions to fulfil their mandate or to take legal measures to ensure effective implementation. In Colombia, national legislation on IDPs is more advanced than anywhere else in the world, but important parts remain to be implemented. Pointing to this discrepancy, the Colombian Constitutional Court issued a ruling in 2004, declaring the lack of adequate protection and assistance to IDPs unconstitutional and urging the government to design a strategy guaranteeing an effective response to the maximum of available resources. In response, the government increased its budget for IDPs for 2005. The Colombian response has been criticised by the UN and Colombian human right defenders for being weak in preventing displacement and protecting IDPs and for neglecting the post-emergency phase and long-term solutions like reintegration. Moreover, it is feared that the reforms initiated by President Uribe could weaken the existing framework of protection for IDPs, particularly by the closing-down of Ombudsman offices and the planned reform of the right of injunction (Acción de Tutela) which in effect would deny IDPs the right to appeal when the state fails to fulfil its obligations.

In Peru, a new law on IDPs was adopted in 2004, defining their protection, assistance and reintegration rights. This was a follow-up on the recommendations included in the 2003 report of the Truth and Reconciliation Commission, which detailed the human rights abuses and displacements that occurred during the conflict. In line with the Truth and Reconciliation Commission's recommendations, President Toledo stressed in 2004 that the law should provide for the compensation of all Peruvians affected by displacement during the conflict.

The recommendations of the Representative of the UN Secretary-General on Internally Displaced Persons following his visits to Colombia and Mexico in 1999 and 2002 respectively have not been fully implemented. In

Mexico, for example, legislation on internal displacement has not yet been adopted, although a law was proposed in 1998.

Similarly, many of the provisions on IDP return and reintegration contained in peace agreements and other initiatives have yet to be fully implemented. In Guatemala, for example, several thousand dispersed IDPs were still waiting to go home as key elements of the 1996 peace agreements covering resettlement, compensation and land allocation had only partially been put into practice. Despite the lack of progress in implementing the peace deal, the UN commission mandated to monitor compliance with the accords (MINUGUA) terminated its work in 2004. In the case of Peru, the government provided hardly any assistance and protection to IDPs at the height of the conflict. It was not until 1991 that a commission was created to design a response for the displaced and in 1993 it launched the Project in Support of Repopulation (PAR) to facilitate the return of IDPs.

In a remarkable display of resilience in the face of war and human rights violations, the displaced have organised into self-help and advocacy groups more than anywhere else in the world. Supported by a vast solidarity network of church associations and human rights organisations, IDPs have been able to articulate their demands, bring their governments to the negotiating table, and draw international attention to their plight. Among the organisations that have been most successful in assisting displaced people to recover identification papers and reclaim their land and property are the National Council of the Displaced in Guatemala (CONDEG) and the Reconstruction and Development Association of the Andean Communities in Peru, as well as a number of influential NGOs in Colombia. National IDP coordination bodies have also been formed. However, the work of these organisations has been seriously undermined by the assassination of some of their members, intimidation and under-funding. Government officials in Colombia and Peru have at times accused NGOs working with IDPs of links with “terrorist” groups, thus further endangering their safety. Churches have had a central role in Latin America, sometimes the only ones to cover the emergency needs of the displaced at the height of conflict. They have been important actors with regard to reconciliation and reconstruction during return processes and monitoring displacement and human rights, particularly in Colombia. Regionally, there are various noteworthy initiatives aimed at tackling the problem of internal displacement. The 1989 International Conference on Central American Refugees (CIREFCA), the UN multi-agency

Development Programme for Displaced Persons, Refugees and Returnees in Central America (PRODERE) as well as the San Jose Declaration on Refugees and Displaced Persons of 1994, all focused on the protection, assistance and reintegration of uprooted populations in the region. The Organisation of American States (OAS) was the first regional body to endorse the UN Guiding Principles and apply them to its work. In addition, the Inter-American Commission on Human Rights (IACHR) of the OAS appointed a Special Rapporteur for IDPs in 1996. Although under-funding seriously limits its impact, the Commission has been active in monitoring the compliance of states with their obligations towards IDPs, and initiated preventive action for displaced Colombians. In 2004, the first regional seminar on internal displacement in the Americas was held in Mexico, under the auspices of the UN Representative on IDPs, the Brookings Institution and the government of Mexico, and several steps to respond to internal displacement were proposed.

Over time, governments and international actors in Peru and Guatemala have shifted to targeting poor populations as a whole rather than recognising IDPs as people with special needs. IDPs may have similar needs to other shantytown dwellers and landless populations, but the blurring of categories risks denying IDPs protection, restitution and compensation rights.

Among international humanitarian agencies, the International Committee of the Red Cross (ICRC) has often been the most active in providing for the displaced. The agency’s perceived neutrality, impartiality and mandate to safeguard international humanitarian law, places it in a good position to gain access to affected displaced people on all sides of conflict zones. UN agencies including UNHCR, UNDP, UNICEF and WFP have also supported national responses to internal displacement, although in 2004 Colombia was the only country in the region with UN programmes specifically targeting IDPs.

With one of the world’s worst displacement crises and three protracted IDP situations largely ignored by the respective governments, internal displacement remains a major concern in Latin America, in particular as the root causes of the conflicts that caused these crises have not yet been adequately tackled. Unresolved land issues, violations of indigenous rights, weak rule of law and social inequalities are not only obstacles to finding durable solutions for the displaced. If they remain unaddressed, they also further undermine the long-term development and stability of the affected countries as well as the region as a whole.



Income generation programmes are crucial for IDPs and returnees to become self-sufficient. This Sri Lankan boy's family was given assistance to purchase goats. Photo: UNHCR/R.Chalasani

Asia-Pacific

It is estimated that, by the end of 2004, some 3.3 million people were displaced within Asia-Pacific region due to conflicts. This figure does not include displacement related to natural disasters or large-scale infrastructure projects, both of which are major causes of displacement in the region. The Indian Ocean tsunami disaster, which struck in a dozen countries in the region on 26 December 2004 killed more than 280,000 people, injured half a million and left up to 1.2 million homeless.

The number of conflict-induced IDPs in Asia-Pacific equals that of refugees from the region⁵⁵.

From 4.6 million two years ago, the number of IDPs has decreased by nearly 30 per cent in the region. The stabilisation or the ending of some conflict situations in the region allowed major return movements to take place in the course of 2002 and 2003. During 2004, these return trends persisted, but they were paralleled by the intensification of

other conflicts forcing hundreds of thousands of people out of their homes. Countries where people were newly displaced by conflict and fighting during 2004 include Nepal, Indonesia (Aceh, Maluku), Pakistan, Burma (Myanmar) and to a lesser extent Afghanistan and the Philippines. In addition, large numbers of people remain unable to return after many years away from their homes. Return and resettlement continued during 2004 in Afghanistan, Indonesia and Sri Lanka, albeit at a slower pace than during 2003. In Bangladesh, Indonesia (Central Kalimantan) and Uzbekistan no new significant displacement has taken place but tensions and unresolved issues still prevent return.

The intensification of ongoing conflicts opposing governments and rebel movements has been the main cause of new displacement during 2004 in Asia. Several governments continued or intensified what they referred to as “counter-terrorist” operations. In some cases, this has undermined opportunities for peaceful settlements of secessionist or revolutionary struggles, namely in Indonesia’s Aceh province and in Nepal. Human rights observers were concerned that such operations were often accompanied by human rights violations, with vulnerable groups, like the internally displaced, being particularly at risk.

Conflict patterns and main causes of displacement

Across the region, conflicts causing internal displacement display some common patterns such as the legacy of colonial rule and incomplete state-building processes. Although seemingly ethnic or religious in nature, many conflicts in Asia are rooted in poverty and the exclusion of certain regions or social groups from the economic development process. These socio-economic cleavages express themselves as political tensions and the stigmatisation of certain ethnic or religious groups – often manipulated by local elites. The inter-religious conflict in the Maluku province of Indonesia, which has since 1999 caused the displacement of over a quarter of a million people, is a good illustration of a situation where economic disparities, and their exploitation by politicians and the military, have fuelled religious polarisation and conflict. In April 2004, renewed violence between Christian and Muslim communities in the capital Ambon claimed the lives of 38 people

and caused the displacement of some 10,000. Some observers said the resumption of violence could have been part of a larger political game in the run-up to national elections taking place two months later.

State-run transmigration programmes are at the root of a number of conflicts in the region. Large-scale population movements have led to tensions over growing ethnic or religious differences and land disputes, as well as to resentment among local populations towards the economic success and political predominance of migrant groups. In Indonesia, for example, the transmigration programmes undertaken under the regime of President Suharto since the 1960s planted the seeds of many of the present conflicts in the country. In the Solomon Islands, migrant Malaitans who dominated the capital Honiara were forced from their homes in June 1999 by local Guadalcanalese militias frustrated by the lack, as they saw it, of economic opportunities left for indigenous people and by the acquisition of their land by migrant Malaitans.

Fighting between governments and rebel movements has been a main cause for displacement in Burma, Sri Lanka, the Philippines (southern island of Mindanao), Nepal and in western Indonesia (Aceh). In several cases it has become a strategy of government troops to forcibly displace civilians as a means of weakening the resource base of insurgents. The brutal displacement of ethnic minorities by the Burmese military regime, in an attempt to control the country’s border areas, has forced hundreds of thousands out of their homes. In addition, thousands more have been displaced in schemes to resettle the urban poor and in the building of large-scale infrastructure projects. Displacement in north-east India reflects a situation where ethnic tensions arising from migrant influxes, land disputes and limited access to political or economic power have led to the emergence of secessionist movements. These groups have often used violent means to force certain populations out of their homes.

Other causes of displacement in Asia include the low-intensity war waged by India and Pakistan for the disputed Kashmir region; persecution of ethnic Pashtun in northern Afghanistan; and the assimilation policies and disputed land issues in the Chittagong Hill Tracts in the eastern part of Bangladesh and in north-eastern India. Incursions by Islamic extremists from neighbouring Tajikistan prompted the government of Uzbekistan

to forcibly displace several thousand ethnic Tajiks from the border region. In Turkmenistan, the government uses forced displacement to punish dissidents and their families, and increase control over national minorities.

New displacements during 2004

The main cause for conflict-induced displacement in Asia during 2004 was an intensification of fighting between government forces and rebel groups, often labelled as "terrorists".

In Burma (Myanmar), at least 526,000 people were internally displaced as of October 2004, either in hiding or in relocation sites. Despite peace talks between some of the main rebel groups and the government, thousands of villagers were forced to flee their homes in the course of military campaigns in Karen, Karenni, and Shan states during 2004. Some estimate that as many as 3,000 fled to Thailand every month and that a similar number were internally displaced. In Nepal, fighting resumed, accompanied by a sharp increase in human rights violations, after the breakdown of peace talks between the government and Maoist rebels in August 2003 ended a ceasefire agreed in early 2003. It is estimated that up to 200,000 people have been displaced since the conflict started in the mid-1990s. Most of the displaced have either flocked to the main cities or fled the conflict to India.

In Indonesia, the region worst-hit by the 26 December 2004 tsunami was the western province of Aceh where a massive government offensive against separatist rebels, launched in May 2003, had already left 2,000 people dead and at least 125,000 displaced. The tsunami killed some 100,000 people, displaced about half a million people and put an estimated 1 million people in need of emergency aid. On Ambon Island in Maluku province, renewed inter-religious violence displaced some 10,000 people in April 2004. Most were only displaced temporarily and were able to return to their homes after a few days.

In Pakistan, the military stepped up efforts to weed out up to 500 foreign Islamist militants believed to be hiding in the tribal areas of South Waziristan. A full-scale military operation was launched in March 2004, involving the search of villages for foreign fighters and local collaborators. The operation is believed to have displaced 30,000 civilians, most of them temporarily.

In Afghanistan, tension and fighting between numerous militias in the north continued during the year, leading many of the Pashtun displaced to the south since the fall of the Taleban to yet again delay their return and illustrating the weakness of government rule outside the capital, Kabul. The total number of IDPs was estimated at 167,000, most of them drought-affected nomadic Kuchi living in camps in the south and the west of the country.

In India, attacks and threats by separatist militants continued to hamper the return of India's largest group of displaced, between 250,000 and 350,000 Kashmiri Hindu Pandits who have been leaving the Kashmir Valley for Jammu and New Delhi since 1989 due to separatist militancy. Violence rose in the run-up to national elections in April and May 2004. The Pandits who remained in the Valley were once again targeted and many reportedly had to flee Kashmir. In north-east India, information about internally displaced continued to be extremely scarce, but there have been reports of return of displaced Santhals in Assam during 2004, many after more than 15 years in relief camps. An unknown number of people also remain displaced in the state of Gujarat after an outbreak of religiously motivated communal violence in February 2002.

Human rights and humanitarian needs

Throughout Asia, IDPs remained exposed to serious human right violations, including torture, indiscriminate bombing of civilians, forced labour, forced recruitment, landmines and restrictions of their freedom of movement.

In Burma (Myanmar), the situation of IDPs in the eastern border areas again gave rise to serious concern. Exposed to ongoing violence and systematic human rights abuses at the hands of government troops, the displaced were without protection from either their government or the international humanitarian community. The total absence of independent observers and aid workers in most conflict areas meant that the displaced populations were extremely vulnerable and in most cases deprived of all basic services.

In Indonesia's western Aceh province, the large-scale military operation ongoing since May 2003 caused concerns among the international community that a major humanitarian crisis was in the making. An assessment of the humanitarian situation in the province conducted by the government and the International Organisa-

tion for Migration in mid-2004 showed that years of conflict had severely disrupted basic services and food supply, and damaged infrastructure in the majority of villages. It is against this backdrop that the tsunami hit Aceh on 26 December, turning an already grave humanitarian situation into a large-scale humanitarian crisis. While the disaster created an opportunity for the international aid community to access the province for the first time since May 2003, the government, citing security concerns, imposed a number of restrictions on the movements of foreign aid workers outside the capital Banda Aceh.

The sharp deterioration of the general human rights situation in Nepal prompted a group of independent experts of the UN Commission on Human Rights to express their serious concern regarding the situation in the country in July 2004. In early 2004, it was reported that the government had started setting up civil defence groups, causing concern among human rights organisations that this initiative was likely to further polarise Nepalese society and increase the level of violence. Displaced women and children often faced particularly difficult conditions. Many children, traumatised by the violence and destruction they had witnessed, moved to urban or semi-urban areas with unhygienic living conditions and hostile environments. Some live on the street, without access to education and exposed to a variety of threats, including sexual exploitation and forms of child labour. Lack of employment opportunities in the urban areas has reportedly forced many displaced women to join the sex business, in particular in Kathmandu.

Sri Lanka was already hosting some 360,000 IDPs prior to the Indian Ocean tsunami, which killed some 30,000 people in the country and displaced over half a million. Most of the IDPs were living in over-crowded and under-funded welfare centres in the north and east of the country. IDPs in these welfare centres were especially vulnerable as the authorities were unable to mobilise sufficient resources to assist these groups. Surveys have concluded that displaced people in welfare centres face serious psycho-social problems such as high rates of suicide, dependency attitudes, loss of self-esteem, alcoholism and depression. Also, displaced people still face safety risks although violence has generally subsided since the 2002 ceasefire. Security concerns affecting internally displaced people included extra-judicial killings, arbitrary detentions and harassment by soldiers at checkpoints.

Obstacles to safe and dignified return

The large-scale return movements that began in 2002 in the three countries most affected by displacement in Asia in recent years – Afghanistan, Indonesia and Sri Lanka – slowed down considerably towards mid-2003. During 2004, this trend was confirmed as obstacles to return proved difficult to overcome and initial hopes and optimism gave way to more realistic assessments of the conditions in areas of return. Lack of assistance and self-reliance opportunities, land and property disputes, continued hostility from local populations, and continued fighting meant that many IDPs preferred to wait before returning, or instead chose to be resettled or integrated in their area of displacement.

In Afghanistan, only 20,000 IDPs returned during 2004 as compared to some 70,000 in 2003 and 400,000 during 2002. Many of those who returned in 2002 and 2003, including refugees, were not properly informed of the conditions in areas of return and of the assistance they would get. In 2004, many chose to wait and see before returning. The scaling down of humanitarian operations since mid-2003, following a significant deterioration in the security situation in many areas of the country and repeated attacks on aid workers, has continued to affect reconstruction and assistance programmes during 2004. This has put into question the sustainability of the return of the remaining 167,000 IDPs and approximately two million refugees.

Apart from insecurity, the main problem faced by returnees and displaced people are issues related to land and property. Many refugees and IDPs who have returned to the north since 2002 have found their homes or land taken by other displaced persons or local commanders and have been forced into a new cycle of displacement. Most have chosen to head for the main cities of Kabul, Jalalabad or Kandahar where they mingle with urban and economic migrants, while others have sought refuge with their relatives, making it in both cases very difficult to assess their numbers.

In both Indian- and Pakistan-controlled Kashmir, the ceasefire between the two countries enabled thousands of internally displaced people to return to their villages. However, landmines were still a widespread problem. In India, local media reported that many had to wait for the demining of their fields before they could return home, especially along the Line of Control.

Despite ongoing demining efforts, landmines were also a cause of concern in Sri Lanka where almost 380,000 people have returned home since a ceasefire ended 20 years of hostilities in 2002. A political crisis which led to a change of government at the beginning of 2004 has since delayed the peace process and more than 350,000 were still internally displaced at year's end. Many of those who were able to return did not do so in safety and dignity. Apart from landmines, returning IDPs faced safety threats, property dispossession, landlessness and a lack of basic infrastructure and basic services.

With the notable exception of Aceh and to a lesser extent Maluku province, former hot spots in Indonesia were in a post-conflict recovery phase and no significant displacement incidents had been recorded in the past three years. This relative calm allowed for a shift from humanitarian assistance to recovery programmes addressing the long-term socio-economic and reconciliation needs. In some areas, return remained impossible or problematic during 2004. In central Kalimantan, local hostility continued to hamper the return of an estimated 130,000 ethnic Madurese forced to seek refuge on mainland East Java and Madura, their island of ethnic origin, since 2001. These IDPs faced a particularly difficult situation, unable to return home but also unable to fully integrate in their areas of displacement having few family connections or being perceived as rivals on an overcrowded island with scarce resources. In Maluku province, where an estimated 200,000 people remained displaced, obstacles to return included security, property and land disputes, and lack of assistance. Most of those who were displaced from Maluku to southeast Sulawesi and from North Maluku to North Sulawesi have opted for local integration.

In the Philippines, where the majority of the estimated 400,000 people displaced in early 2003 had managed to return in the months following the July 2003 ceasefire, it is estimated that as of end-2004, some 60,000 people remained displaced or unable to resume their livelihoods. Although only a few skirmishes between rebels and government forces were reported during 2004, the continued militarisation of return areas and the lack of housing and rehabilitation assistance continued to hamper the return of the displaced, in particular in the Muslim-populated areas.

In the Chittagong Hill Tracts of Bangladesh, the majority of the people who had to flee during a two decade-long armed conflict between local insurgent groups and the Bangladeshi government remained displaced because of unresolved land disputes with Bengali settlers.

National and international response

The response provided by national authorities to the crisis of internal displacement in the Asia-Pacific region varied greatly from one country to another. Despite some positive steps taken by some Asian governments in the last few years to address the needs and concerns of their uprooted populations, few governments had the capacity or the political will to comprehensively address this issue, let alone the root causes of the conflicts leading to displacement. By and large, internal displacement caused by conflict continued to be viewed by most governments as a strictly internal problem and few were willing to accept external intervention from the international community.

Countries where an IDP strategy has been devised to assist in the protection and assistance given to the displaced and their return to their homes include Sri Lanka, Indonesia and, more recently, Afghanistan and the Philippines.

In Afghanistan, the government, in close collaboration with the UN, focused its efforts on finding solutions for the estimated 167,000 IDPs still living in camps in the south and unable to return due to the continued drought and the persistence of ethnic tensions in the north. In April 2004, the government adopted an IDP National Plan in an effort to promote and accelerate the return and reintegration of IDPs by 2007. The plan aims to ensure the return of the displaced to their home areas while fostering their sustainable reintegration through area-based development plans benefiting both the displaced and the host communities.

On the southern island of Mindanao, the Philippine government, with support from the United Nations, is currently conducting an 18-month rehabilitation and resettlement programme addressing the needs of the estimated 60,000 people unable or unwilling to return home. In 2001, both the rebel MILF and the government formally agreed to ensure the safe return of IDPs to their villages of origin. In 2002, additional implementing guidelines were agreed upon, providing for financial and technical assistance to the displaced to rebuild their houses and livelihoods and reparations awarded by the government for the properties lost and/or destroyed by the conflict. It is hoped that the relative calm observed during 2004 in Mindanao will pave the way for the implementation of these guidelines in 2005.

The ongoing "war on terror" and the US-led invasion of Iraq in 2003 appear to have encouraged some governments to step up their own "anti-terrorist" operations against insurgent and rebel groups. Linking such

operations to the “war on terror” has enabled governments to escape international involvement and criticism, and thus broadened the spectrum of pursuing military solutions to conflicts instead of seeking negotiated solutions.

The Indonesian government, for example, denied international access to the population affected by the military offensive launched in Aceh in May 2003 on the grounds that it considered the fight against the “GAM terrorists” an “internal problem”. Only when the tsunami devastated Aceh at the end of the year did the government grant access to foreign aid workers, albeit still under strict security restrictions.

Similarly, the only international assistance welcomed by the Nepalese government was the provision of military equipment and training to its armed forces. The government has not developed any IDP-specific strategy and has only taken limited steps to acknowledge the displacement crisis caused by the fighting. Limited assistance has been provided to those displaced by the Maoists, but those displaced by the actions of the security forces were not recognised as IDPs, nor did they qualify for any assistance from the authorities. In October 2004, the government announced the creation of a relief package for IDPs, although most observers agree that it cannot be considered as an appropriate response to the problem of the displaced. The vast majority of aid agencies were implementing development programmes, without specifically addressing the emergency assistance needs of IDPs. However, in 2004 the internal displacement crisis attracted more attention from the international community, including the United Nations.

A number of other countries also continued to refuse to acknowledge any displacement problem and consequently often denied access to this vulnerable group. In Burma (Myanmar), for example, the military regime prevented international humanitarian actors from accessing more than 500,000 IDPs in the eastern border areas. The Indian government, while providing some assistance to the displaced, continued to systematically refer to IDPs as “migrants” and often prevented international organisations from assisting affected populations.

Absence of regional mechanisms

Given the dominance of the sovereignty paradigm in Asia, it is not surprising that the region has no dedicated mechanisms to deal with problems of internal displacement. Contrary to European, African or American regional organisations which have at least acknowledged the Guiding Principles on Internal Displacement, neither the South Asian Association for Regional Cooperation (SAARC), nor the Association of Southeast Asian Nations (ASEAN), has done so, preferring to emphasise non-interference in the domestic affairs of their members.

Most regional efforts to coordinate and improve the response to internal displacement in Asia come from non-governmental organisations, national human rights commissions and academic researchers, including within the framework of the Asia Pacific Forum of National Human Rights Institutions (APF). At the request of the APF, the Global IDP Project in 2004 began training national human rights commissions to enhance their capacity to strengthen the protection of IDPs in their respective countries.

Europe

In Europe, some three million internally displaced people still waited to be able to return to their homes at the end of 2004. Eleven countries, almost a quarter of Europe's 48 states, remained affected by internal displacement. The number of IDPs in Europe was twice the number of refugees originating from the continent⁵⁶.

Over the past year, very little progress was made in enabling Europe's IDPs to go back to their places of origin in safety and dignity, as required by the UN Guiding Principles on Internal Displacement. Although return movements continued in a few countries, such as in Bosnia and Herzegovina, the overall number of IDPs in the region hardly decreased during 2004.

The continued failure to resolve the region's "frozen" conflicts, and major set-backs such as the new wave of violence and displacement in Kosovo in March 2004, were among the main obstacles to more significant return movements. But even where return was possible, conditions in return areas were often not conducive for IDPs to re-establish their lives in safety and dignity. Lack of security, discrimination, difficulties in repossessing property, dilapidated infrastructures and limited economic opportunities were all factors still preventing IDPs from going back to their towns and villages in several countries, including Bosnia and Herzegovina, Croatia, Kosovo (Serbia and Montenegro) and Turkey.

In situations where return was not (yet) possible or where the displaced chose not to return, progress was also very slow in providing IDPs with an adequate legal status and sufficient assistance to temporarily or permanently integrate in their host communities or elsewhere in the country. In several countries, IDPs still faced restrictions and obstacles relating to their freedom of movement and access to documentation, employment and public services. In virtually all European countries affected by internal displacement, IDPs were clearly among the most vulnerable groups in society in terms of social and economic status.

Most IDPs in the region have lived in extremely precarious conditions for many years, often in collective centres, deprived of income opportunities and without proper status. Hundreds of thousands have even been displaced for more than a decade.

Support by the international community for assistance and protection activities is often essential to improve the conditions of IDPs, both during emergency situations and in developing longer-term solutions. However, funds for durable solutions are usually more difficult to obtain as it often takes years after a conflict ends before return or resettlement are possible. Europe is particularly affected by this situation as it hosts many protracted situations of displacement. In Bosnia and Herzegovina, for example, aid flows had dried up by the time IDPs started to feel confident enough to return, and the lack of international support threatens to undermine the ongoing return movement as well as its sustainability.

On the positive side, several regional organisations continued to monitor the political and human rights aspects of internal displacement and have demonstrated an increasing interest in the issue.

Right to return in safety and dignity

The right of the displaced to return voluntarily and in conditions of safety and dignity has been increasingly recognised by most governments in Europe. Almost all situations of internal displacement in the region have been the object of agreements, resolutions or recommendations in international or regional forums, confirming that IDPs should be able to return to their homes according to international standards⁵⁷. In reality, however, the right to return continued to be implemented under conditions which do not satisfy these standards, or it was simply denied altogether.

In the Russian Federation, the authorities continued to pressure IDPs into returning from Ingushetia to Chechnya. The Russian return policy was widely denounced by human rights organisations as premature, poorly



Chechen children play football in a camp in Sunzhenski district. The last remaining camps IDPs from Chechnya were closed down in 2004 by the Russian authorities. Photo: UNHCR/T.Makeeva

implemented, and in violation of the principle of voluntariness. With consistent reports of violence and widespread human rights abuses in Chechnya, the causes of the displacement could not be seen as ended yet, while the political, social and economic reconstruction of the republic had not shown sufficient results.

Serious doubts were also raised about the modalities of the return of displaced Kurds in Turkey. Independent organisations had not been able to verify official statistics of return movements. Furthermore, the presence of pro-government village guards in return areas and the end of the ceasefire by the Kurdish rebels in June 2004 led to renewed insecurity and cases of displacement in the south-east.

In countries where the return of IDPs had made undeniable progress in recent years, the situation of returnees remained precarious and significant numbers of IDPs were still waiting for an opportunity to return in dignified and safe conditions. In Bosnia and Herzegovina, some 300,000 people were still officially registered as IDPs, a considerable decrease from the one million IDPs at the height of the conflict. Although return figures have declined steadily since 2001, it is

encouraging to note that in 2004 many of the returns took place in areas which saw some of the worst atrocities during the war, such as Srebrenica. This indicates a significant improvement of the security situation as well as a strong commitment of many IDPs to return to their pre-war homes. However, an increase in support through development and income-generating projects is needed to translate the successful property repossession process into actual returns and make these returns sustainable. Indeed reports suggested that returnees often preferred to sell their repossessed properties and move to urban areas with better employment opportunities.

In Bosnia, Croatia and Macedonia the remaining IDPs could be classified in two categories: the most marginalised and vulnerable groups such as ethnic minorities (including Roma), the elderly, and households headed by women, and families who would like to return but refrain from doing so for lack of employment opportunities and subsistence means. Their return will require even more substantial efforts from the authorities and the international community in terms of reconstruction assistance and social support, including income-generating activities.



A group of residents of the southern Serbian town of Nis watch a burning mosque in the centre of the town. An outbreak of ethnic violence in March 2004 led to the displacement of thousands of people in Kosovo, and derailed the fragile return process in the province. Photo: Reuters/Stevan Lazarevic, courtesy www.alertnet.org

Other internally displaced populations in the region continued to be blatantly denied the right to return home. In Cyprus, the rejection of the UN-sponsored plan for the reunification of the island again dashed the hopes of Greek Cypriot IDPs to return to their homes and repossess their properties in the northern part of the island under Turkish control, and of Turkish Cypriots to go back to the south. In Georgia and Azerbaijan, the absence of settlements to the conflicts over Abkhazia, South Ossetia and Nagorno Karabakh, respectively, continued to be the main obstacle to the return of IDPs. The prospects for a safe return of the Kosovo Serbs were seriously compromised by the outbreak of inter-ethnic violence in Kosovo in March 2004 which led to the displacement of thousands of people, most of them belonging to the province's minority populations.

Delayed integration

Although a right, return home in safety and dignity remains an unrealistic option in the medium or even long term for most of the IDPs in the region. In addition, many IDPs may not wish to return to their places of origin any more, even if return is possible. In such

situations, it is the responsibility of national authorities to ensure IDPs adequate conditions for their temporary or permanent integration in areas of displacement or elsewhere in the country⁵⁸. Authorities have largely failed to do so in Europe, with the notable exception of Cyprus, where IDPs have received substantial support from the Greek Cypriot government or the Turkish Cypriot authorities to help them reconstruct their lives away from their homes. Elsewhere, IDPs are still facing very precarious conditions with regard to their physical and personal safety, and/or their economic, social and legal status.

In a number of countries, governments have long been reluctant to normalise the situation of IDPs in an attempt to support their claims on breakaway territories. In Azerbaijan, Georgia, and Serbia and Montenegro, but also in the Russian Federation, IDPs have lived under conditions of legal discrimination which cannot be explained only by the limited budget capacity of the governments. This included discriminatory laws and practices affecting IDPs' voting rights, access to public services and freedom of movement which have not been brought in line with international standards.

There are often fears among internally displaced communities that the normalisation of their status would imply a renunciation of their right to return and recover lost properties. In the countries affected, too little effort was made to address these fears, for example through information campaigns, consultation with the IDPs and legal advice.

In virtually all countries, IDPs were disproportionately affected by poverty and unemployment, resulting in poorer health and nutrition status, lower education levels, and more precarious housing conditions compared to the rest of the population.

In two countries with small displaced populations, Armenia and Moldova, the needs of IDPs had been largely ignored by the governments, forcing the displaced to develop their own coping strategies, to the point that it was hardly possible to identify them as IDPs any longer. In other countries, including Georgia and Azerbaijan, the sheer size and level of destitution of the IDP population, which by far exceeded the absorption capacity of local communities, necessitated a stronger involvement of national authorities and the international community. However, progress towards normalising the situation of IDPs remained slow and more efforts were needed to mobilise the resources necessary to move this process forward.

Regional organisations

Europe is the continent with the greatest involvement of regional organisations in monitoring the situation of IDPs and addressing their needs. The increasingly stronger role of regional organisations on IDP issues is a significant step towards improving the status and living conditions of the displaced, even though much remains to be done to ensure that these efforts result in actual improvements on the ground.

The accession process to the European Union (EU) provides a strong leverage to bring about positive change with regard to improving the situation of IDPs, as respect for human rights, including the rights of minorities, is a key precondition for accession negotiations and eventual membership. In the case of Croatia and Turkey, currently the only two candidate countries affected by internal displacement, the European Commission specifically highlighted the need for progress in addressing internal displacement in the context of accession to the EU. With regard to Turkey, the European Commission noted in its October 2004 progress report that “serious efforts are needed to address the problems of internally displaced persons and the socio-economic development of the region [i.e. southeastern Turkey] in a comprehensive fashion”⁵⁹. In a communication on Croatia’s membership application, the Commission in April 2004 acknowledged the development by the Croatian government of provisions to provide housing solutions to refugees and IDPs who wish to return, but stressed that “the implementation of these provisions [...] has to be accelerated and improved”. It also made clear that “additional efforts should be made as regards to the sustainability of return”⁶⁰.

The Organisation for Security and Cooperation in Europe (OSCE), to which all European countries affected by internal displacement belong, has adopted a number of politically binding commitments on internal displacement and provides assistance to governments in addressing IDP situations through its institutions and field missions. OSCE member states have committed themselves to “facilitate return, in safety and dignity [...], according to international standards”, including the principle of voluntariness, and ensure that the reintegration of IDPs into their places of origin “be pursued without discrimination”⁶¹. Most recently, the OSCE, in December 2003, formally acknowledged the relevance of the Guiding Principles on Internal Displacement for its work and that of its member states, and organised a conference in November 2004 on

how to strengthen the organisation’s role in addressing IDP issues. Through its institutions and field missions, the OSCE contributed to promoting the Guiding Principles on Internal Displacement, particularly in the south Caucasus, and played an instrumental role in the implementation of durable solutions for IDPs in south-eastern Europe.

The Council of Europe has been involved in monitoring state responses to internal displacement, mainly through its Parliamentary Assembly, the European Court of Human Rights, the Commissioner for Human Rights and the regular monitoring reports covering the implementation of obligations by accession states. Following a Parliamentary Assembly recommendation of 2003, the Committee of Ministers confirmed in 2004 its interest and concern on issues related to internal displacement and recalled the importance of the Guiding Principles. The Committee of Ministers expressed its willingness to develop programmes on IDP issues and to assist states in bringing their legislation into conformity with the Guiding Principles⁶². The European Court of Human Rights has been an important instrument for IDPs to obtain remedy for violations of their rights and compel states to respect their international commitments. In two recent judgments, in 2003 and 2004, the Court condemned Turkey for violating the rights of displaced Turkish citizens of Kurdish origin⁶³.

Middle East

With 2.1 million internally displaced people, the Middle East is the region with the smallest IDP population, although figures are notoriously unreliable and should be treated with caution, as many IDPs have never been registered. The Middle East is the only world region that has produced more refugees than IDPs, with a total refugee population of 5.2 million people originating from the region⁶⁴. It also is the region hosting the longest-lasting displacement situations. Internal displacement has affected several generations in the Middle East, as most conflicts causing displacement have remained unresolved for more than two decades.

With over one million people, by far the largest group of IDPs in the Middle East lives in Iraq, although the length of displacement, varying levels of integration, and widespread insecurity have complicated the monitoring and registering of IDPs in the country. Conflict and instability continued to generate internal displacement in Iraq during the past year. In November 2004, an estimated 222,000 people were forcibly displaced from the city of Fallujah as a result of fighting between US-led Coalition Forces and Iraqi insurgents. Also during the year, smaller numbers of people were displaced in other areas, mainly due to military operations and fighting. Most international humanitarian organisations assisting IDPs had left the country by the end of 2003 because of growing insecurity and the targeting of humanitarian staff. Humanitarian access did not improve in 2004, which meant that the UN and other international organisations had to rely on local staff and NGOs in order to assist IDPs. Since the fall of the previous regime, there have been spontaneous return movements, most notably by Kurdish IDPs to the Kirkuk area. While the international community and the interim Iraqi government adopted an IDP strategy in 2004, the reduction in humanitarian operations and the ongoing conflict in the country diminished the likelihood of finding any immediate solutions for the many Iraqis who remained displaced.

The situation of the internally displaced in other parts of the Middle East also did not improve over the past year. In the context of the Israeli-Palestinian conflict, there was a sharp increase in people displaced in the Occupied Palestinian Territories as a result of house demolitions during 2004. In a major military operation, Israeli security forces entered the Gaza strip in May 2004 and demolished hundreds of residential buildings, which led to the displacement of some 3,800 people. Although an interim order by the Israeli High Court temporarily stopped the house destructions, the same Court later ruled that Israeli forces had the right to demolish homes without granting residents a right to a court appeal where the lives of Israeli soldiers were at risk or where informing residents would jeopardise military operations. Israel also continued with the construction of a “security barrier” separating Israel from the Palestinian Territories, ignoring a ruling by the International Court of Justice that highlighted the human rights and humanitarian implications of the project, including the potential for further internal displacement.

Persisting tensions between Israel and Syria continued to prevent the return of the IDPs displaced from the Golan Heights. Little data is available on the situation of IDPs in Syria and Lebanon.

Causes and areas of displacement

Internal displacement in the Middle East has resulted from religious and ethnic conflicts which have spanned several decades, as well as competition over land and natural resources. In many cases, conflicts and subsequent displacement have led to the resettlement of populations along ethnic or religious lines. In Iraq, the regime of Saddam Hussein, dominated by Sunni Muslim Arabs, for decades killed or displaced hundreds of thousands of members of the ethnic Kurdish minority, culminating in the 1988 Anfal campaign during which more than 100,000 Kurds lost their lives. Until the eve of the US-led invasion in Iraq in spring 2003,

the regime pursued a policy of “Arabisation”, expelling the non-Arab population – Kurds, Assyrians and Turkomens – from the oil-rich region of Kirkuk and replacing them with ethnic Arabs from the south in an attempt to increase control over the region’s natural resources by changing its ethnic character. The government also uprooted large numbers of Shia Muslim Arabs in the southern marshlands in retaliation for their alleged support of the uprising against the regime in the wake of the end of the first Gulf War in 1991. Following the fall of Saddam Hussein’s regime, significant displacement has continued to take place, mainly due to military counter-insurgency operations such as the one in Fallujah in November 2004 which displaced over 200,000 people. The return of Kurdish IDPs to their places of origins in and around Kirkuk also led to new displacement, particularly in 2003, as the returnees reclaimed their properties given to ethnic Arabs from the south under the previous regime.

Hundreds of thousands of people were internally displaced by the civil war in Lebanon from 1975 to 1990. Some 300,000 IDPs remain unable to return due to a number of factors including difficult socio-economic conditions and lack of support. In addition, there was continued instability in the southern part of the country, including regular exchanges of fire between the Lebanese militia Hezbollah and Israeli forces, despite the withdrawal of the Israeli army in 2000 behind the internationally-recognised border. The wars between Israel and its neighbours after 1948 caused large-scale displacement, including the internal displacement of Arabs within Israel and of inhabitants of the Golan Heights within Syria. These IDP populations, each of whom now totals several hundred thousand, have been displaced for decades and there is little prospect for return any time soon.

The current Israeli-Palestinian conflict has led to the demolition of the homes of several thousand Palestinians in the Gaza Strip and the West Bank. The construction of a “security barrier” by the Israeli government, which could incorporate up to ten per cent of the West Bank, has also displaced people, and cut others off from their land. In July 2004, the International Court of Justice judged the building of the barrier illegal; however the UN reported that construction work continued throughout the year.

Human rights and humanitarian situation

While the human rights situation in the Middle East generally remained poor, lack of protection for IDPs was particularly evident in Iraq and the Occupied Pal-



A Palestinian woman stands with her daughter inside her house damaged by the Israeli army in the southern Gaza Strip. Photo: Reuters/Mohammed Salem, courtesy www.alertnet.org

estinian Territories. In Iraq, the poor security situation worsened the living conditions of the displaced, many of whom had limited access to clean drinking water, proper sanitation, and adequate shelter. In addition to the overall insecure environment, IDPs faced restrictions on their freedom of movement and threats to their physical security including landmines and unexploded shells, as well as the threat of eviction from public buildings where many were sheltered. In the Palestinian Territories, human rights organisations reported an increase in violations committed by the

Israeli Defence Forces since the beginning of the second Intifada in September 2000, including unlawful killings and the destruction of civilian property. The humanitarian situation also further deteriorated in the Palestinian Territories, mainly because of restrictions on freedom of movement within and between the Territories.

While in Iraq and the Palestinian Territories, the displaced often belong to the poorest and most vulnerable parts of society, IDPs do not have significant humanitarian needs beyond those of the rest of the population in other countries of the region, for example Lebanon and Syria. There, the repossession of land and properties is generally the most pressing concern. In Lebanon, the lack of economic opportunities and suitable social conditions in rural areas has also slowed return. In the south of Israel, the Israeli government intensified pressure on Bedouin communities to leave their villages, through a new resettlement plan, and by spraying their crops with insecticide in 2003. People displaced within Syria still seek restitution of their lands in the Golan Heights, an area taken by Israel in 1967.

Durable solutions

As most of the displacement situations in the region have lasted for over two decades, and in the absence of any recent and reliable surveys and needs assessments, it is difficult to determine to what extent the long-term IDPs have integrated into their current places of residence and who should still be considered internally displaced. This is particularly the case for many displaced villagers in Lebanon and in northern Iraq, who have been resettled in urban areas for decades and have little incentive to return to their areas of origin where their villages were destroyed or, at best, still lack infrastructure and employment opportunities. Children born in displacement also often lack strong ties with their families' place of origin, particularly in Lebanon. In the case of Israel and Syria, however, where the absence of political solutions has prevented the return of IDPs for decades, children are still said to want to return to their parents' original homes. It remains to be seen if they will indeed go back if and when the political situation allows.

In Iraq, the establishment of a Property Claims Commission at the beginning of 2004 constituted an important step towards achieving durable solutions for the displaced in that country. However, the Commission was not yet operational by the end of the year. The resolution of property claims and other initiatives towards establishing conditions for durable

return were made virtually impossible by the general climate of violence and political instability in the country.

National and international response

Governments in the region have provided limited protection and assistance to the people displaced within their countries. In two countries in the region, Lebanon and Iraq, ministries have been established and tasked with finding solutions for the displaced. In Iraq, the Ministry of Displacement and Migration became officially operational in 2004. The Ministry collaborated with the UN on a strategy to address the issue of internal displacement in the country, but its ability to provide necessary protection and assistance to the displaced was constrained by a number of factors including security concerns and inadequate operational capacity. In Lebanon, the government continued to identify the return of the displaced as a key priority, but factors such as corruption, political rivalry and budgetary problems have delayed the process.

In Israel, the refusal by the Israeli High Court in June 2003, after six years of legal proceedings, to allow displaced villagers to return to their former homes in the north, was a major setback for the affected IDP population. The Court accepted the state's assertion that return was impossible given the present security and political conditions, and might be used by Palestinian refugees to support their claims to return to Israel. Advocates for the displaced and leading Israeli newspapers denounced the decision as negating the rights of the displaced as Israeli citizens.

In the Middle East, governments generally impose restrictions on freedom of speech and assembly and the region has lacked a strong civil society to draw attention to the plight of IDPs. The exception is Israel, where numerous associations have been formed since the early 1990s to campaign for the rights of displaced Israeli Arabs.

The response to internal displacement at the regional level has been weak as the Middle East does not have an organisation representing all the states in the region. The League of Arab States is the only body which does fulfil some kind of a regional function, but it excludes Israel and Iran, and has limited itself to the issue of displaced Palestinians exclusively.

The only country in the region in which the international community has established a collaborative institutional and operational response to the situation of internal displacement is Iraq. UN and NGO humanitarian assist-

ance also concentrates on vulnerable populations in the Palestinian Territories, including internally displaced people. However, IDPs in the Palestinian Territories continue to lack a protection mechanism, as the main agency concerned with vulnerable populations within the area, the UN Relief and Works Agency (UNRWA) has a mandate that is limited to relief assistance.

In both countries, humanitarian access to IDPs was severely restricted. In Iraq, insecurity limited the capacity of humanitarian agencies to assess the needs of IDPs and respond to them. In the Palestinian Territories, Israeli authorities continued to regularly block delivery of basic food items, medicines and fuel to the Gaza Strip, and UN humanitarian access to the West Bank was impeded by bureaucratic procedures. UN agencies and NGOs active in the Palestinian Territories are increasingly reorienting resources from development to relief to meet the growing humanitarian needs of the population.

The renewed dialogue between the Israeli government and the Palestinian authorities following the death of President Yasser Arafat in November 2004 raised hopes for a revitalisation of the stalled peace process and progress towards finding durable solutions for the affected IDPs.

Endnotes

- ¹ This estimate is based on the analysis of available country figures and additional information on displacement and return trends, as included in the Global IDP Project's online database (www.idpproject.org).
- ² No refugee data available for 2004 at time of publication.
- ³ Refers to refugees originating from the respective region. No refugee data available for 2004 at time of publication.
- ⁴ UNHCR, 2003 Global Refugee Trends, <http://www.unhcr.ch/cgi-bin/texis/vtx/home/opensslpdf?tbl=STATISTICS&id=40d015fb4>
- ⁵ Implementing the Collaborative Response to Situations of Internal Displacement, Guidance for UN Humanitarian and/or Resident Coordinators and Country Teams, Inter-Agency Standing Committee, Geneva, September 2004
- ⁶ USAID Assistance to Internally Displaced Persons Policy, October 2004, <http://www.usaid.gov/policy/ads/200/200mbd.pdf>
- ⁷ Principle 4.1 spells out that the Principles should be applied without discrimination of any kind, including sex. According to Principle 11.2, IDPs shall be protected against gender-specific violence, rape, forced prostitution, slavery and sexual exploitation. Principles 7, 18, 19, 20 and 23 underline the rights of women to equal access and participation in decisions affecting them and in assistance programmes, taking into account their special needs.
- ⁸ For more information on gender-based violence against IDPs and others in times of conflict, see Ward, Jeanne, If Not Now, When?, Addressing Gender-based Violence in Refugee, Internally Displaced, and Post-Conflict Settings, the Reproductive Health for Refugee Consortium, New York, April 2002 www.reliefweb.int/w/rwb.nsf/6686f45896f15dbc852567ae0053013240b847015485b34749256bfe0006e603?OpenDocument See also Lindsey, C., Women Facing War: The Impact of Armed Conflict on Women, International Committee of the Red Cross (ICRC), Geneva, 2001 [http://www.icrc.org/Web/Eng/siteeng0.nsf/htmlall/p0798/\\$File/ICRC_002_0798_EXEC_SUMM.PDF!Open](http://www.icrc.org/Web/Eng/siteeng0.nsf/htmlall/p0798/$File/ICRC_002_0798_EXEC_SUMM.PDF!Open)
- ⁹ Inclusive Security, Sustainable Peace: A Toolkit for Advocacy and Action, published by the advocacy NGOs Women Waging Peace and International Alert in November 2004, <http://www.womenwagingpeace.net/toolkit.asp>
- ¹⁰ *Gender* refers to socially constructed roles of women and men ascribed to them on the basis of their sex, whereas the term *sex* refers to biological and physical characteristics. Some examples of guidelines/checklists: Inter-Agency Standing Committee (IASC), Summary, Guidelines and Checklist for Integration of Gender Analysis and Assessment <http://www.reliefweb.int/library/GHARKit/files/workshoponintegrationofgenderintoneeds.pdf>; UN Office of the Special Adviser on Gender Issues and the Advancement of Women, Gender Checklist for Liberia, 2003, <http://www.peacewomen.org/resources/1325/LiberiaGenderChecklist.html>
- ¹¹ Workshop on the Future International Response to Internal Displacement, Canada Mission to the UN, Geneva, 4 February 2004
- ¹² See GP 4(2). All Principles apply to displaced children; however some provisions specifically address IDP children: Principle 11(b) prohibits any restriction on the liberty of IDP children, 13(1) prohibits the participation and recruitment of IDP children in armed hostilities, 17(3) covers the right to family unity and 23(2) the right to education.
- ¹³ UNICEF, The needs of internally displaced women and children: Guiding Principles and Considerations, Office of the Emergency Programmes Working Paper Series, September 1998.
- ¹⁴ Kastberg, Nils, Strengthening the response to displaced children, in: Forced Migration Review, Volume 15, October 2002, p.13-15, <http://www.fmreview.org/FMRpdfs/FMR15/fmr15full.pdf>
- ¹⁵ UNICEF, Landmines pose gravest risk for children, 2 December 2004, http://www.unicef.org/media/media_24360.html
- ¹⁶ Machel, Graça, The Impact of Armed Conflict on Children, United Nations, 1996, <http://www.unicef.org/graca/>
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- ²¹ Nutrition Information in Crisis Situations, United Nations System Standing Committee on Nutrition, November 2004, Report Number IV, <http://www.reliefweb.int/library/documents/2004/unscn-global-30nov.pdf>
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- ²³ Bangladesh, Bosnia and Herzegovina, Burundi, Colombia, Croatia, Guatemala, Iraq, Lebanon, Mexico, Peru, Russian Federation, Rwanda, Serbia and Montenegro (Kosovo), and Sri Lanka.
- ²⁴ On two occasions (1984, and the Marin case in 1994) the Inter-American Commission on Human Rights ruled that Nicaragua should pay restitution and compensation for damages made to property during displacement.
- ²⁵ UNMIK Housing and Property Directorate, December 2004 Statistics, http://www.hpdkosovo.org/statistics_m.asp
- ²⁶ In the Loizidu case, the Court condemned Turkey to pay compensation and give back the property of a Cypriot who was barred from access to his home. Compensation has been paid but the property has still not been repossessed by its owner.
- ²⁷ Ipek v. Turkey, February 2004 and Yoyler v. Turkey, July 2003
- ²⁸ E/CN.4/Sub.2/2004/22
- ²⁹ Guiding Principles on Internal Displacement, principle 18.
- ³⁰ See Shelter and adequate housing are priority needs in the country (2004), Global IDP Project Iraq profile, www.idpproject.org
- ³¹ See for example Shelterproject.org (<http://www.shelterproject.org/shelter/home/home.jsp>); Sphere Handbook on Shelter, Settlements and Non-Food Items (http://www.sphereproject.org/handbook/hdbkpdf/hdbk_c4.pdf); and Camp Management Tool Kit (<http://www.nrc.no/camp/>).
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